

Environmental Law and Policy

TOPIC ONE: General Introduction to Environmental Law

1.1 Definition of Environmental Law

There are several definitions of the term environment. The Black's law dictionary defines environment as the totality of physical, economic and social circumstances and factors that surround and affect the desirability and value of people and that also affect the quality of people's lives.

Section 1 of NEA defines the "environment" to mean the physical factors of the surroundings of human beings, including land, water, atmosphere, climate, sound, odour, taste, the biological factors of animals and plants and the social factor of aesthetics and includes both the natural and the built environment;

Environmental law is a body of law which is a system of complex and interlocking statutes, common law, treaties, conventions, regulations, and policies which seek to protect the natural environment which may be affected, impacted or endangered by human activities. Some environmental laws regulate the quantity and nature of impacts of human activities: for example, setting allowable levels of population. Other environmental laws are preventive in nature and seek to assess the possible impacts before the human activities can occur.

Environmental Law can also be defined as the law relating to the use, protection and conservation of the environment. Environmental law as a distinct system arose in the 1960s in the major industrial economies. While many countries worldwide have since accumulated impressive sets of environmental laws, their implementation has often been woeful. In recent years, environmental law has become a critical means of promoting sustainable development or sustainability. Policy concepts such as the precautionary principle, public participation, environmental justice and the polluter pays principle have formed many environmental law reforms in this respect. There has been considerable experimentation in the search for more effective methods of environmental control beyond traditional "command and control" style regulation. Eco taxes, tradable emission allowances are some of these innovations.

1.2 Sources of Environmental Law

Environmental law draws on all the formal sources of law. These include: Statute Law, which include Acts of Parliament and subsidiary legislation, common law, customary law and international law.

1.3 Functions of Environmental Law

The key functions of modern environmental law may be outlined as follows:

- To establish regulatory structures for environmental management, including regulatory agencies and specialist courts and tribunals;
- To empower regulators to manage environmental impacts using plans, policies, standards, licences and incentives;
- To require persons proposing environmentally significant activities to seek permission from regulators;
- To enable members of the public to take part in strategic planning and project evaluation;
- To require activities of environmental significance to be assessed before permission can be granted;
- To provide administrative, civil and criminal sanctions for non-compliance with the law;
- To allow the legality of decisions of regulators to be challenged by members of the public; and
- To allow the merits of certain decisions of regulators to be challenged by members of the public.

1.4 Development of Environmental Law at the International Scene

The development of International Environmental Law can be considered in terms of the following periods.

a) The period before 1940

The concern for the environment begun to appear on the international agenda during the early 20th century with the conclusion of a number of international Conventions. The first of such agreements include the following:

1. Convention for the Protection of Useful Birds to Agriculture of 1902
2. The Treaty for the Conservation of Fur Seals, Washington, 1911
3. Convention Concerning the Use of White Lead in Painting, Geneva 1921
4. Convention for the Regulation of Whaling

These were very narrow in scope and designed to protect specific species.

Other conventions included;

- The Convention Relating to the Preservation of Flora and Fauna in their Natural State, London 1933



- The Convention on Nature, Protection and Wild life Preservation in The Western Hemisphere Washington, 1940

b) The Period Between 1940- 1972

The number of international treaties increased dramatically during this period. There were approximately sixty International agreements completed by 1970. They included the International Planet Protection Convention of 1951. The major objective of this convention was to protect component parts of the environment considered valuable in human terms.

The most significant development during this period was the establishment of the United Nations system and more importantly, the United Nations that was established in 1945. In order to carry out its broad mandate, the United Nations entered into agreements with or established several specialized agencies; by 1970, various United Nations bodies and other international organizations were involved in issues of environmental management, and they include the following;

- WHO (World Health Organization)
- WMO (world Metrological Organization)
- ICAO (International Civil Aviation Organization)
- IAEA (International Atomic Energy Agency)
- FAO (Food and Agricultural Organization)
- OECD (Organization for Economic Co-operation and Development)
- IMO (International Maritime Organization)

c) The Period Between 1972-2002

In 1972 the Stockholm conference was held and produced the Stockholm Declaration. It recommended the creation of an environmental agency known as UNEP. It also recommended the adoption of the Stockholm action programme. UNEP played a very important role in the development of various international agreements. These included

Convention on the Control of International Trade in Endangered Species of Wild Flora and Fauna of 1973

Other developments included;

1. The World Conservation Strategy 1980 prepared by IUCN (international Union of Conservation of Natures or World Conservation Union), with assistance of the World Wide Fund (WWF) and UNEP. The World Conservation Strategy identified a range of objectives, e.g.

- The maintenance of essential ecological processes and life support systems
- The preservation of genetic diversity
- Sustainable use of species and ecosystems

The underlying principal behind the World Conservation Strategy was the need to integrate conservation objectives with development quality. The impact of the WCS is that, most national conservation strategies have been made based on it and it has been used as a guiding document.

2. The World Charter for Nature 1982

This was initiated by the World Conservation Union in collaboration with other organizations like UNEP. It is divided into three sections which include; general principals, functions and implementation.

The general Principals are concerned with the following;

- Respecting nature and its essential processes
- Not compromising genetic viability
- Giving special protection to unique areas; representative samples and ecosystems and rare or endangered species
- Using natural resources so as to obtain optimum sustainable productivity
- Protecting nature against warfare and other hostile activities

The functions were to be applied to specific areas such as decision making processes. On implementation, the charter calls for the incorporation its principles into the laws and practices of each state and into the practices of intergovernmental and non governmental organizations. The impact is that this charter has been used to develop environmental laws and programmes in many countries.

3. Caring For the Earth

This was adopted in 1991 and it was a successor of the WCS. It was also prepared in collaboration with UNEP. It concentrates on the following areas.

- Energy
- Business, industry and commerce
- Human settlement
- Farm and rangeland
- Forestland
- fresh waters, oceans, and coastal areas

Caring for the earth has been useful in achieving sustainable development.

4. The Rio conference (also called the earth summit) 1992.

This adopted the Rio declaration. It built on the Stockholm declaration of 1972 and introduced the concept of sustainable development as the basis for global, national, and local action. The Rio declaration recognizes the following important elements.

- Intergenerational equity, which is the use of resources today in a way that future generations can also benefit from them;

- It calls upon states to enact effective environmental legislation;

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- It adopts the precautionary principle, which insists against postponement of problem solving;
- It recognizes the financial and technological responsibility of developed countries and the important role of women, the youths, indigenous and local communities, the private sector, and non governmental organizations in achieving sustainable development.

The impact of this is that most of the environmental legislations have been developed base on the Rio principles.

The Rio conference also produced Agenda 21 as a program of action to implement the commitments. Agenda 21 provides mechanisms in the formation of policies, plans, programs and guidelines for national government by which to implement the principles contained in the Rio declaration.

Agenda 21 contains four main sections

- The social and economic dimension
- Conservation and management of resources for development
- Strengthening the role of major groups, women, youths, NGOs and the private sector
- Means of implementation

Agenda 21 therefore provides details of the framework for the cooperative generation of strategies for sustainable development and environmental management at a global level and although it is not legally binding in international law, the political commitments made at Rio and the momentum for the promotion of its programmes through the commission on sustainable development and by Intergovernmental Organizations and NGOS ensuring that some of its suggested programmes are carried out at the national level was an important step in the development of environmental law.

Another outcome of RIO was the adoption of the Forests Principles. These are described as non-legally binding authoritative statements or principles for a global consensus on the management, conservation, and sustainable development of all types of forests both natural and planted in all geographical regions and climatic zones. The principals are designed to encourage government to promote and provide for community participation in development and implementation and planning for natural forest policies.

The RIO conference was also responsible for the development of the following conventions:

- The United Nations Framework Convention on Climate Change (UNFCCC) 1992,
- The Convention on Biological Diversity (CBD) 1992
- The Convention to Combat Desertification 1992.

d) 2002 Developments

- The world summit on sustainable development (WSSD). This was hosted in South Africa in 2002. It was convened by the United Nations Commission on sustainable development at the instance of the UN General Assembly. There are two important documents that came out of it;

- a) The Johannesburg declaration, which reiterates the global commitment to sustainable development.
- b) The plan of implementation which is more detailed identifies the gaps in implementing AGENDA 21.

Generally, the WSSD emphasized or renewed the emphasis on the synergies between combating poverty and improving the environment.

The Development of National Environmental Law

The development of national environmental law can be divided into 5 phases

1. Before 1960

This stage was characterized by the following elements;

- Total reliance on the traditional common law and civil law regimes
- Lean sectoral and functional statutes on natural resources and environmental functions. These acts dealt with specific issues such as public health e.g. the Public Health Act and factories such as the Factories Act.
- The laws focused on production and pollution through command and control regimes
- The laws emphasized physical planning, zoning, in order to cope up with urban development
- There was negligible public participation; cases were based on private and proprietary interests
- Sectoral agencies generally applied conservation measures selectively, for instance, public health sector, fisheries sector, forestry sector, wild life sector among others there were no cross cutting body
- Pollution was not controlled
- There were limited public interest groups; these were confined to consumer advocacy.

2. 1960-1969

The situation was more or less the same as the first, except the following developments took place:

- Sectoral and functional statutes were strengthened
- Heightening of public awareness and emergence of public interest groups (but these were often forcefully suppressed)
- There was growing local and global concern particularly in local urban centers regarding the problem of urbanization.

- There was a call for the UN conference on human environment through the UN general assembly in 1968 (this raised awareness).
- The laws of physical planning, zoning and control were strengthened. Concerns calling for change in the legal regime led to a report on environmental policy which was presented to the United Nations Congress in July 1968. This led to the drafting of new environmental policies and statutes;
- The first framework environmental legislation was enacted in 1969 in the United States, which was, the Environmental Policy Act (EPA). However, effectiveness was not achieved because at the time, the act was not understood

3. 1970-1980

The following developments took place.

- The frame work environmental law came into force in the United States in January 1970.
 - Other countries like Western Europe, Japan, China, enacted frame work environmental legislation like that of the United States
 - The regime of frame work environmental law introduced environmental impact assessment process (EIA)
 - Public participation through EIA process was introduced.
 - Several sectoral and functional statutes were developed, but without any coordinating institution.
 - No single African country developed frame work environmental legislation
4. Frame work environmental laws at different levels were developed in Africa e.g.; Algeria, 1983, Guinea, 1987, Libya, 1982. Other countries like Kenya and Tanzania tried to enact but there was no effect

5. 1990 to date

Several countries developed frame work environmental laws. Uganda developed the National Environment Act; Kenya developed the Environmental Management and Coordination Act and Tanzania developed the Environment Act of 2004

1.5 Historical background of Environmental Law in Uganda

The development of environmental law in Uganda can be divided into 5 phases: pre-colonial phase; colonial phase, post independence phase; Amin's regime phase; and post 1986 phase.

a) Pre-colonial phase

Prior to the establishment of colonial rule in Uganda, rural communities had evolved various customary rules, which governed use of natural resources, such

as forests and wetlands. There was communal use of natural resources such as water and forests and the management of resources was based on rules of



nature such as nomadic pastoralism and shifting cultivation. Certain flora and fauna species were given special protection due to medicinal or religious reasons. Certain vegetation for instance were protected for herbs. Among the Masai game meat was not eaten. In this way, animals were protected. Traditional religion also saw the conservation of certain features which were regarded as abodes for the gods. For example, Lake Victoria, also known as Lake Nalubaale was considered a home for the "balubaale".

b) Colonial Phase

During this phase, several laws related to the environmental management were developed. These were intended to regulate use of specific resources and collect revenue. The laws did not consider elements of sustainable development and applied command and control theory. These laws dealt with specific resources and they were designed to regulate resource use and collect revenue. They included;

- The Forestry Act of 1947
- The Timber Export Act
- The Fish and Crocodile Act
- The Game Parks Preservation Act

These Acts were particular and therefore had a significant contribution to sustainable management of resources. There were no issues like public participation, sharing of revenue under the Wild life Act.

c) Post- independence phase

When Uganda gained independence in 1962, most basic aspects of the policies and laws governing natural resources remained intact. All that was done was to substitute words and names such as 'public' for 'crown' and 'Uganda' for 'Britain.' The failure to develop 'home-grown' concepts and laws to govern use of natural resources became an expensive premium on the environment. Apart from the forestry and fisheries sector, the management of other natural resources (soil, water, wildlife and vegetation etc.) was on the basis of numerous laws and regulations often without a gazetted policy. Moreover, these laws were so scattered that their implementation has often resulted in pitched conflicts between government departments (the similarity of basic principles, interests and goals notwithstanding), which in turn undermined their effectiveness on the ground.

The colonial laws were re-enacted and adopted. Therefore, there was no significant change in the laws. The Forestry Act of 1947 became the Forestry Act of 1964. The Game Parks Preservation Act 1952 became the National Game Parks and Preservation Act of 1964.

d) Amin's regime phase

During this phase, the economy and infrastructure started to crumble. Environment degradation grew rapidly as a result of the political instability that ensued and the dictatorial and undemocratic systems of government that followed. There was no meaningful development policies during this period and this led to poor environment management. Attention was not given to the natural resources and the environment of the country in general and government investment in this area was practically zero, except that one law was enacted; The Prohibition of Burning Grass Decree, which required permission from the Agricultural Officer, with the supervision of the chief before one could burn grass. It has today been re-enacted.

e) Post 1986 Phase

It was not until 1986 when the National Resistance Movement (NRM) ascended to power that a number of measures to address the environmental problems were embarked on. The cabinet portfolio and Ministry of Environmental Protection (MEP) were established. The mandate of the ministry was to coordinate and regulate national efforts in the wise management of life supporting natural resource so as to ensure their availability for sustainable development.

In 1991, the government initiated a participatory and consultative process to improve environmental governance through the NEAP. The NEAP was a major milestone in Uganda's development of environmental law because it provided strategies for addressing concerns in the areas of policy, legislation, institutional reforms and new investments with a view of promoting sustainable development. The NEAP process was closely followed by the adoption of the National Environment Management Policy for Uganda 1994, which sets out the overall policy goals, objectives and principles for environmental management. In order to achieve the overall policy goal of sustainable development, the NEMP recommended four initial actions which included inter alia, the creation of an appropriate institutional and legal framework as well as the revision and modernization of sectoral policies, laws and regulations. It was through this process that the current legal regime relating to the management of the environment emerged.

TOPIC TWO: The Relevance of International Environmental Law to Uganda

2.1. Definition of International Environmental Law

What is international law?

International law is a system of principles, rules that govern relationships between states and other internationally recognized problems.

What is international environmental law?



International environmental law simply encompasses the corpus of international law relevant to environmental issues. It is a body of international law that concerns the protection of the global environment. Originally associated with the principle that states must not permit the use of their territory in such a way as to injure the territory of other states, international environmental law has since been expanded by a plethora of legally-binding international agreements

International law governs state behaviour. However it is not developed and enforced like domestic law. Even though there is no effective central authority, breach of international law may result in a variety of sanctions including collective sanctions under the UN or state action under the international era of justice, arbitration, economic sanctions and diplomatic protests.

2.2. Sources of International Environmental Law

The sources of international law are referred to under Article 38(1) of the Statute of the International Court of Justice. The statute defines sources of international law to include:

a) International conventions whether general or particular, establishing rules expressly recognised by the contesting states. These include; treaties, conventions, pacts, protocols and covenants. Examples include; Conventions on Biological Diversity, Conventions on trade and endangered species and many others.

b) International custom accepted as law (international customary law). These are norms and rules that countries follow as a matter of custom and they are so prevalent that they bind all states in the world. An unwritten international norm becomes part of customary law if it is consistently followed over a long period of time by a significant number of states which accept it as a legal obligation. For example, if a particular commitment to act is repeatedly expressed at important international conferences, and if all the participating states act in accordance with it, then the commitment may become an obligation under customary law. Examples include rules developed by international organisations such as FAO and UNEP.

c) The general principle of law recognized in civilized nations. These refer to general principles common to the world legal systems. These norms are available and acceptable to states to regulate their international relations. Examples include Stockholm Declaration, Rio Declaration and World Charter for nature.

d) Judicial decisions these include opinions of international courts and

tribunals. the courts include the International Court of Justice, the Law of the Sea Court and other regional treaty tribunals.



e) The teachings and writings of the most highly qualified publicists of international law these include; learned writings scientific and professional associations and of eminent lawyers. For example; Helsinki rules on waters of international rivers which was developed by the international law association, the theory of inter-generational equity expounded by Professor Brown Weiss.

2.3. Regional Environmental Law Instruments of Africa and the EAC

- **African-Eurasian Migratory Water Bird Agreement (AEWA) of 1995**

The Agreement on the Conservation of African-Eurasian Migratory Waterbirds (AEWA) is the largest of its kind developed so far under CMS. It was concluded on 16 June 1995 in The Hague, the Netherlands and entered into force on 1 November 1999 after the required number of at least fourteen Range States, comprising seven from Africa and seven from Eurasia had ratified.

Parties to the Agreement are called upon to engage in a wide range of conservation actions which are describes in a comprehensive Action Plan (2003- 2005). This detailed plan addresses such key issues as: species and habitat conservation, management of human activities, research and monitoring, education and information, and implementation. The Agreement is governed by a Meeting of the Parties (MOP) who in turn have created a Technical Committee and a Standing Committee. The latter is responsible for matters related to policy, governance, administration and finance

- **The Lusaka Agreement on Co-operative Enforcement, Operations Directed at Illegal Trade in Wild Flora and Fauna 1994.**

This is an agreement among members of the East African, central and southern African countries in co-operative enforcement directed at illegal trade in wild flora and fauna. Uganda signed the agreement on 9th September 1994. This agreement derived its basis from the African Convention on the Conservation of Nature and Natural Resources, Convention on International Trade in Endangered Species, and Convention on Biological Diversity. The agreement aims at reducing and ultimately eliminating illegal trade in wild fauna and flora and establishing a permanent task force to implement that objective.

- **Phyto Sanitary Convention for Africa of 1967**

The objectives of the Convention are to control and eliminate plant diseases in Africa and prevent the introduction of new ones. It calls for member states to share relevant information on the eradication of plant diseases. It calls for

vigilance to ensure that plant diseases are not imported into countries signatory to the convention.

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- **The African Convention on Conservation of Nature and Natural Resources of Maputo 2004**

This is a framework convention dealing with natural resources management by bio-diversity. It is primarily pan African legal instrument for the conservation of the environment in general and bio-diversity.

- **The Treaty of the East African Community of 1999.**

One of this treaty's main objectives is to promote sustainable utilization of the natural resources of the partner states. It has articles on the environment and natural resources. Article 111 deals with the management of the environment and natural resources, Article 112 deals with management of the environment alone, Art. 114 deals with management of natural resources.

- **The East African Community Memorandum of Understanding on the Environment.**

This is part of the East African Community Treaty. It provides for the development of harmonized national and sectoral mechanisms for the management of shared resources of Trans boundary resources and ecosystems especially the forests, water, wild life and marine.

- **COMESA Treaty**

This treaty has the following objectives;

- to preserve, protect and improve the quality of the environment,
- to contribute towards the protection of human health
- to ensure the prudent rational utilization of natural resources

Under art 123, member states agreed to do the following:

- a) Take necessary measures to conserve their natural resources
- b) Operate in the management of their natural resources for the preservation of the ecosystems and arrest environmental degradation.
- c) Adopt common legislation for the preservation of shared land, marine and forestry resources.

- **IGAD (Intergovernmental Agency for Development)**

The ultimate goal of this organization was to achieve economic integration and sustainable development for the regime. It has the following objective;

- a) To promote joint development strategies and gradually harmonize micro- economic policies and programmes in the social, technological, and scientific fields.
- b) To harmonize policy with regard to trade, customs, transport, communications, agriculture and natural resources, and promote free movement of goods, services and people within the region.
- c) To create enabling environment for foreign cross boundary and domestic trade and investment.

d) To initiate and promote programmes to achieve regional food security and sustainable development of natural resources and environmental protection, to encourage and assist efforts of member states to collectively combat drought and natural as well as manmade disasters and their consequences.

f) To develop a coordinated and complimentary infrastructure in the area of transport, telecommunication and energy in the region.

- **Convention for the Establishment of Lake Victoria Fisheries Organization of 1994 (LVFO)**

This Convention fosters a common system resource management approach among contracting states in matters regarding Lake Victoria with a goal of restoring and maintaining the health of its ecosystem and ensuring sustainable development for the benefit of the present and the future generation. The convention has the following objectives;

- a) To further cooperation among the riparian states in matters regarding Lake Victoria.
- b) Harmonize national measures for the sustainable utilization of the living resources of the lake.
- c) Develop and adopt conservation and management measures to ensure the length, health, ecosystems and sustainability of living resources.

- **The Protocol for Sustainable Development of Lake Victoria Basin-2003**

This protocol is a detailed document aimed at sustainable development in Lake Victoria. The preamble of the protocol recognizes the following aspects of Lake Victoria as a shared water resource;

- a) That development activities may have negative impact on the environment leading to degradation of the environment and depletion of natural resources.
- b) That a clean and healthy environment is a prerequisite for sustainable development.
- c) That water is a finite and vulnerable resource essential to sustain life and development and the environment.
- d) That water must be managed in an integrated and holistic manner linking social and economic development with protection and conservation of natural resources.
- e) That water is an economic good having social and economic value whose utilization should be priority to its economic use, taking cognizance of basic human needs and safe guarding ecosystems.

2.3. Application of International Environmental Law in Uganda

Uganda recognizes the need to participate in International environmental law. Article 123 of the constitution provides that the president may make treaties, conventions, agreements or other arrangements between Uganda and any



international organizations in respect of any matter. The article further adds that parliament shall make laws to govern ratification of any treaty, conventions, agreements or other arrangement.

Sec 106 of the National Environment Act (NEA) provides that where Uganda is a party to any convention or treaty, concerning the environment, after the convention or treaty has been ratified under Article 123, the minister may by statutory order with the approval of parliament by resolution;

- a) set out provisions of the convention or treaty,
- b) Give the force of law in Uganda to the convention or treaty or any part of the convention or treaty required to be given force of law in Uganda
- c) Amend any enactment other than the constitution for the purpose of giving effect to the convention.
- d) Make such other provisions as may be necessary for giving effect to the convention or treaty in Uganda, or for enabling Uganda perform its obligation or exercise its rights under the convention or treaty.

This section applies to any convention or treaty, whether adopted before or after the coming into force of the Act.

All treaties in Uganda are ratified according to the procedure laid down by the Ratification of Treaties Act (Cap 204). The Act provides for the following modes of ratification in section 3;

- a) Ratification by cabinet
- b) Ratification by parliament where the treaty has the effect of amending the constitution, or where the treaty relates to armistices, neutrality or peace.

In case the treaty requires amendment, the Attorney General has to certify in writing that the implementation of the treaty in Uganda would require amendment. The Attorney General's certificate is presented to cabinet and subsequently a motion is tabled in parliament. If satisfied, parliament passes a resolution for the ratification of the treaty. Where a cabinet ratifies a treaty, it must lay it before parliament as soon as possible. Instruments of ratification of a treaty concluded by cabinet or parliament are signed sealed and deposited by the minister responsible for foreign affairs to the ministry in charge of all treaties and conventions.

2.4 Review of International Law Conventions Uganda has signed

Uganda has signed several international conventions and treaties;

1. African Convention on the Conservation of Nature and Natural Resources of 1968 signed and ratified in 1977.
2. Convention Concerning the Protection of the World Cultural and

Natural Heritage Of 1972 signed and ratified in 1987.

3. The United Nations Convention on the Law of the Sea of 1982, signed and ratified in 1991



- **The Vienna Convention on the Protection of the Ozone Layer of 1985**

Uganda acceded to this Convention on 24 June 1988. The objectives of this convention include the protection of human health and the environment against adverse effects resulting or likely to result from human activities which modify or are likely to modify the ozone layer; adoption of agreed measures to control human activities found to have adverse effects on the ozone layer; to co-operate in scientific research and systematic observations; and to exchange information in the legal, scientific, and technical fields.¹

The convention establishes the secretariat as the regulating body. It lists the chemical substances of natural and anthropogenic origin that are thought to have the potential to modify the chemical and physical properties of the ozone layer. These include: carbon substances like carbon monoxide (CO), carbon dioxide (CO₂), methane (CH₄); nitrogen substances including nitrous oxide (N₂O); and chlorine substances. The convention therefore targets the reduction in the production and use of these chemicals by the parties.

- **The Montreal Protocol on Substances that Deplete the Ozone Layer²**

Uganda signed the Montreal Protocol on 15 September 1988 and ratified the protocol on same date. This protocol controls the production and consumption of the most commercially and environmentally significant ozone-depleting substances deals with atmospheric pollution. Article 2A of the Protocol controls production and use of CFCs. Comparable limitations are set out in article 2B in respect of halons; article 2C in respect to other fully halogenated CFCs; article 2D in respect of carbon tetrachloride; article 2E in respect of 1,1,1- Trichloroethane (Methyl chloroform); article 2F in respect to hydrochlorofluorocarbons; article 2G in respect to hydrobromofluorocarbons; article 2H Methyl bromide; and article 2I in respect of Bromochloromethane.³

- **United National Framework Convention on Climate Change (UNFCCC) of 1992**

Uganda signed the UNFCCC on 13 June 1992 and ratified it on 8 September 1993. The ultimate objective of United Nations Framework Convention on

¹ See the Convention summary.

² The Montreal Protocol on Substances that Deplete the Ozone Layer as either

adjusted and/or amended in London 1990, Copenhagen 1992, Vienna 1995, Montreal 1997 and Beijing 1999.

³ Under article 2I, Each Party shall ensure that for the twelve-month period commencing on 1 January 2002, and in each twelve-month period thereafter, its calculated level of consumption and production of the controlled substance in Group III of Annex C does not exceed zero. This paragraph applies save to the extent that the Parties decide to permit the level of production or consumption that is necessary to satisfy uses agreed by them to be essential.



Climate Change (UNFCCC) is to stabilize greenhouse gas concentrations in the atmosphere at a level that would prevent dangerous anthropogenic interference with the climate system. Such a level should be achieved within a time-frame sufficient to allow ecosystems to adapt naturally to climate change, to ensure that food production is not threatened and to enable economic development to proceed in a sustainable manner.

One of the major principles in the Convention that deals with climate change is the precautionary principle which imposes an obligation on states to take measures to prevent and minimize the causes of climate change and mitigate its adverse effects. The weakness with this convention is that it is not specific as far as emission reduction targets are concerned.

- **Kyoto Protocol to the United Nations Framework Convention on Climate Change**

Uganda ratified the Kyoto Protocol on 25 March 2002. This protocol sets binding numerical targets for the limitation and reduction of greenhouse gas emissions - carbon dioxide, methane, nitrous oxide, hydrofluorocarbons, perfluorocarbons and sulphur hexafluoride for the industrialised and transition countries during the period 2008-2012.⁴ No numerical targets for the reduction of emissions were set for the developing countries, but they are required to report on their emissions.

The Kyoto protocol defines three international policy instruments (Kyoto mechanisms) which provide opportunities for annex 1 parties to fulfil their commitments cost effectively. These are: the Clean Development Mechanism (CDM); International Emissions Trading (IET);⁵ and Joint Implementation (JI).⁶ From these three mechanisms, it is CDM that applies to developing countries like Uganda because JI and IET are meant for industrialised countries.

- **United Nations Convention to Combat Desertification (UNCCD)**

Uganda signed this convention on 21 November 1994 and ratified it on 25 June 1997. The goal of the UNCCD is to combat desertification and mitigate the effects of drought, especially in Africa. It provides for measures to be put in

⁴ See Article 3 read together with Annex A to the Protocol.

⁵ IET allows annex 1 parties to exchange part of their assigned national

emissions allowances. IET implies that countries with high Marginal Abatement Costs (MACs) must acquire emissions reductions from countries with low MACs. Under IET system, countries that have emissions units to spare can sell this excess capacity to countries that are over their targets. This mechanism of emission trade may be called carbon market because carbon dioxide is the most widely produced greenhouse gas.

⁶ Article 6 of the Kyoto Protocol (*supra*, note 3) provides for JI. JI allows industrialized countries to meet part of their required cuts in greenhouse-gas emissions by paying for projects that reduce emissions in other industrialized countries. The sponsoring governments receive credits that may be applied to their emissions targets; the recipient nations gain foreign investment and advanced technology (but not credit toward meeting their own emissions caps; they have to do that themselves).



place to this end, supported by international cooperation and partnership arrangements, in the framework of an integrated approach. To achieve these objectives, long-term, integrated strategies were agreed that focus simultaneously on improved agricultural productivity and rehabilitation, conservation and sustainable management of land and water resources. The aim of this was to improve living conditions, in particular at the community level. Under Article 1 of the UNCCD, desertification is defined as land degradation in arid, semi-arid and dry sub-humid areas resulting from various factors, including climatic variations and human activities.

- **Convention on Biological Diversity of 1992**

Uganda signed CBD on 12 June 1992 and ratified it on 8 September 1993. The objectives of this Convention, to be pursued in accordance with its relevant provisions, are the conservation of biological diversity, the sustainable use of its components and the fair and equitable sharing of the benefits arising out of the utilization of genetic resources, including by appropriate access to genetic resources and by appropriate transfer of relevant technologies, taking into account all rights over those resources and to technologies, and by appropriate funding.⁷

The convention provides that parties should take measures including legislation in certain instances, inter alia:

- Under article 6 to integrate sustainable utilization into national strategies and plans and programs.
- To promote insitu conservation in accordance with article 8 and in particular to protect traditional knowledge about conservation and protecting threatened species.
- Promote ex-situ conservation under article 8.
- To promote sustainable use of biological diversity under article 10.
- To promote international cooperation in the protection of biological diversity under various provisions.

- **The Cartagena Protocol on Biosafety of 2000**

Uganda signed this protocol on 24th May 2000 and ratified on 30 November 2001. The Cartagena Protocol on Biosafety was a supplementary Agreement to the CBD. The objective of the Cartagena Protocol on Biosafety is to contribute to ensuring an adequate level of protection in the field of the safe transfer, handling and use of living modified organisms resulting from modern biotechnology that may have adverse effects on the conservation and sustainable use of biological diversity, taking also into account risks to human health, and specifically focusing on transboundary movements. It addresses the potential adverse effects of biodiversity, taking also into account risks to

human health, living modified

⁷ Article 1.



organisms, (LMOs) which are defined in the Protocol as ‘any living organism that processes a novel combination of genetic material obtained through the use modern biotechnology.’⁸

- **Convention on International Trade in Endangered Species (CITES) 1973**

Uganda ratified CITES on 20th November 1987. The objective of CITES is to prevent international trade from threatening the survival of wild fauna and flora. To achieve the above objective, CITES has established an international network for the control of international trade in live and dead animals and plants and of parts and derivatives thereof. Control of international trade in endangered species is primarily done through government permits/certificates required for such trade. Monitoring international trade is based on Trade Records.

The Convention functions as the result of permit system for species listed in three categories. Appendix I species include those threatened by extinction, which are or may be affected by trade. Appendix II species are those that may become threatened with extinction if trade is not strictly regulated. And Appendix

III species include those species, which individual Parties to the Convention choose to make subject to regulations and which require the cooperation of the other Parties in controlling trade.

- **Convention on the Conservation of Migratory Species of Wild Animals (Bonn Convention) of 1979**

The Convention on the Conservation of Migratory Species of Wild Animals (CMS) aims to conserve terrestrial, marine and avian migratory species throughout their range. It is an intergovernmental treaty, concluded under the aegis of the United Nations Environment Programme, concerned with the conservation of wildlife and habitats on a global scale. CMS provides a global platform for cooperation on the conservation and sustainable use of migratory animals and their habitat.

- **Convention on Wetlands of International Importance Especially as Water Fowl (RAMSAR Convention)**

Uganda ratified this Convention on 4th March 1988. Ramsar Convention seeks to ensure the sustainable, wise use of wetland resources including designation of wetland sites of international importance and to ensure that all wetland resources are conserved, now and in the future. Countries are required to:

- implement the "wise use" principles of the Convention (including wetland policies, awareness programs, legislative review) and co-operate

- with other Contracting Parties;
- manage a network of protected wetland sites of international importance in co-operation with provinces, territories, and non-governmental organizations (NGOs);
-

⁸ *Id.*, Article 3 (g).



- foster co-operation through joint work plans and Memoranda of Understanding (MoUs) with the Convention on Biological Diversity (CBD), Bonn Convention, the World Wildlife Fund for Nature (WWF), Wetlands International, BirdLife International, IUCN, the Convention on International Trade in Endangered Species of Wild Fauna and Flora (CITES), and other international treaties and organizations; and
- Contribute financially to the Convention.

- **Basel Convention on Control of Trans-boundary Movement of Hazardous Wastes and their Disposal of 1989**

Uganda signed this Convention on 11th March 1999. The overall goal of the Basel Convention is to protect, by strictly control, human health and the environment against the adverse effects which may result from the generation, transboundary movement and management of hazardous and other wastes. Other objectives include reducing transboundary movements of wastes to a minimum consistent with their environmentally sound and efficient management, and controlling any permitted transboundary movement under the terms of the Convention; minimizing the amount of hazardous wastes generated and ensuring their environmentally sound management; and assisting developing countries in environmentally sound management of the hazardous and other wastes they generate.

In summary, the aim of the Basel Convention is to help reduce the transboundary movements and amounts of hazardous wastes to a minimum, and to manage and dispose of these wastes in an environmentally sound manner.

- **Bamako Convention on the Ban of Import into Africa and the Control of the Trans Boundary Movement and Management of Hazardous Wastes within Africa of 1991**

This convention enjoins the parties to strive to adopt and implement the preventive, precautionary approach to pollution problems which entails, inter alia, preventing the release into the environment of substances which may cause harm to humans or the environment without waiting for scientific proof regarding such harm. The Parties shall cooperate with each other in taking appropriate measures to implement the precautionary principle to pollution prevention through the application of clean production methods, rather than the pursuit of a permissible emissions approach based on assimilative capacity assumptions

- **Stockholm Convention on Persistent Organic Pollutants 2001**

This instrument was finalised and adopted as The Stockholm Convention on Persistent Organic Pollutants at the Conference of Plenipotentiaries in December 2000. Uganda signed the Convention on 20th July 2004. The

objective of this convention is to protect human health and the environment from persistent organic pollutants (art. 1).



TOPIC THREE: Application of Common Law Principles in Environmental Law

Common Law is that part of the law of England formulated developed and administered by the common law courts, based originally on the common customs of the country, and unwritten. It has generally developed and derives through judicial decisions. Common Law approach is applicable in environmental litigation. It is distinguishable from statute law because for statute law is passed by parliament. Common law became applicable in Uganda through the 1889, 1902 and 1911 Orders in Council and was retained by the Judicature Act of 1967 and the current Judicature Act.⁹ Thus section 14 of the Judicature Act confers upon the High Court, subject to the Constitution, unlimited original jurisdiction in all matters and such appellate and other jurisdiction as may be conferred on it by the Constitution or this Act or any other law. This jurisdiction is to be exercised in conformity with written law, but where written law does not extend or apply, in conformity with the common law and doctrines of equity. The law of torts is part of common law and by virtue of the above section, it is applicable.

There are many common law causes of action that can occasionally be useful to prevent or obtain damages for environmental wrongs. These wrongs in environmental law can be regarded as environmental torts. There are five causes of action in environmental torts. A tort is a crooked conduct; a wrong; an act which causes harm to a determinate person, whether intentionally or not, being a breach of a duty arising out of a personal relation or contract and which is either contrary to law or an omission of a specific legal duty, or a violation of an absolute right.¹⁰ Salmond describes it as a civil wrong for which the common law remedy is an action for un-liquidated damages and which is not exclusively a breach of contract or breach of trust or other merely equitable obligation.¹¹

The following are the tort actions that can be applied in environmental law.

3.1.Nuisance

A nuisance is the most useful common law tort in environmental cases. It can provide a remedy for air and water pollution, noise, vibrations, smells, soil contamination, flooding and many other intrusions upon peaceful use and enjoyment of property. A nuisance was described by Justice E.S Lugayizi in *Dr Bwogi Richard Kanyerezi V The Management Committee of Rubaga Girls School*.¹² The judge made reference to *Winfield on Tort*¹³ and stated that;

“A nuisance is an unlawful interference with the person’s use or enjoyment of land. Such interference in essence being either of

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⁹ Cap 13 Laws of Uganda.

¹⁰ Osborn's Law Dictionary.

¹¹ Salmond on torts p.15

¹² Civil Appeal No.3 of 1996

¹³ Eighth Edition p.353 -367



continuous or recurrent nature and usually stench and smoke would qualify under the description. ...Despite that however, whether a nuisance is actionable or not will depend on a variety of considerations especially the character of the defendant's conduct and the balancing of conflicting interests (i.e. the right of the defendant to enjoy his property as he wishes against the right of his neighbors to enjoy theirs without interference etc.). Where the defendant has acted reasonably, irrespective of the fact that his actions may lead to a nuisance, such a nuisance would not be actionable. Lastly, the mere fact that the action or process or business giving rise to the nuisance complained of is useful to the public generally is not a good defense."

There are two types of nuisance; private nuisance and public nuisance.

i. Private Nuisance

Private nuisance was described by Justice E.S Lugayizi in *Dr Bwogi Richard Kanyerezi V The Management Committee of Rubaga Girls School*, that a nuisance is private where it exclusively affects a private person and not a sizeable number of the community where it occurs. In this case the applicant sought an injunction to restrain the respondents from using 12 VIP latrines situated on the lower end of the school. The respondent contended that by reason of the attendant bad smell, it constituted a nuisance by unreasonably interfering with, and diminishing, the applicant's ordinary use and enjoyment of his home. It was found, as a fact, that the toilets were being used by over 600 students and constantly emitted smelly gases and those gases went directly into the applicant's house, thus making life very uncomfortable for its inhabitants. Court held that these gases constituted a nuisance and an injunction was granted.

Private nuisance is a continuous, unlawful and indirect interference with the use or enjoyment of land, or of some right over or in connection with it.¹⁴ Therefore from the definition, private nuisance must be continuous interference over a period of time with the claimant's use and enjoyment of the land¹⁵, and there are rare examples where a single act has been held to constitute a nuisance for instance firework display constituted a nuisance when it was inevitable that for 15-20 minutes debris of flammable nature would fall upon nearby property, thereby damaging the property in the ensuing fire.¹⁶ The test that is used to determine whether a single act is to constitute a nuisance is the gravity of harm it is to impose on the affected person. Where the harm is so severe, then court

¹⁴ Asif Tufal www.lawteacher.net, law of tort page.

¹⁵ See *De Keyser's Royal Hotel V Spicer Bros Ltd* (1914) 30 TLR 257 where noisy pile driving at night during temporary building works was held to be a private nuisance.

¹⁶ *Crown River Cruises V Kimbolton Fireworks* (1996) 2 Lloyd's Rep 533. See also *British Celanese V Hunt (Capacitors) Ltd.* (1969) 2 All ER 1253, where foil had blown from the defendant's land where it was stored and had damaged electricity sub station, causing electricity to an industrial estate to be cut off. This had occurred once a few years previously because of the way in which the materials were stored. The trial judge held this to be a private nuisance.



may hold that the act constitutes a nuisance notwithstanding the fact that it has occurred only once.

Secondly, the interference must be unlawful or unreasonable. The plaintiff must prove that the defendant's conduct is unreasonable, thereby making it unlawful. The rule is that a person should use his land not to injure his neighbors. In determining whether the defendant's conduct was reasonable or not, court considers factors like the locality of the defendant's activities,¹⁷ for instance frying fish in Kololo¹⁸ may constitute a nuisance while it may not be so in Kikoni.¹⁹

It has also been argued that the activities unlikely to amount to a nuisance if it is useful to the whole community taking into account all the surrounding circumstances, such as the defendant's locality and the duration of activities.²⁰

In private nuisance, it is only a person who has a proprietary interest in the land affected by the nuisance who will succeed in a claim for nuisance. Such as owner or reversioner, or be in exclusive possession or occupation of it as tenant or under licence to occupy.²¹ On the other hand, the possible defendants include: any person who creates a nuisance whether or not that person is the occupier of the land at that time;²² occupiers who adopt and continue to allow nuisance on their land may also be liable, even where the nuisances were created by predecessors in title, trespassers or third parties;²³ and a landlord may be liable for a nuisance emanating from his land, for instance, if the land lord had knowledge of the nuisance before letting or where the landlord reserved the right to enter and repair the premises.

ii. Public Nuisance

A public nuisance was defined in by Lord Denning in *Attorney General v P.Y.*

*A. Quarries Ltd*²⁴ as follows:

It is a nuisance which is so widespread in its range and so indiscriminate in its effect that it would not be reasonable to expect one person to take proceedings on his own responsibility to put a stop to it, but that it should be taken on the responsibility of the community at large."

The grounds upon which an action in public nuisance will be brought are similar to those for private nuisance and the same rules relating to causation will apply.

¹⁷ See for instance *Sturges V Bridgman* (1876) 11 Ch D 852 where it was stated that what may be a nuisance in Belgravia Square would not necessarily

be so in Bermondsey

¹⁸ Kololo is one of the developed residential areas in Uganda.

¹⁹ Kikoni is one of the most slum areas in Kampala city.

²⁰ Asif Tufal , supra note 14

²¹ See *Malone V Laskey* (1907) 2 KB 141, where the plaintiff's action in private nuisance failed because she was merely a wife of a mere licensee, and had no proprietary interest in the land her self.

²² Asif Tufal supra note 14

²³ See *Sedleigh Denfield V O'Callaghan* (1940) 3 All ER 349

²⁴ [1994] 1 All E.R. 910



To amount to a nuisance, the relevant act or omission must amount to interference with the use and enjoyment of a public right. Some rights that have been recognized by court include the right to use a highway or waterway or a right to fish such that pollution of public waters constitutes a nuisance since a substantial number of the population.

The advantage with public nuisance is that it is not tied to the requirement of proprietary interest in the land as is the case with private nuisance. A person may proceed under public nuisance regardless of whether or not he has an interest in the land.

Actions for public nuisance are instituted by the Attorney General or where it is to be instituted by a private person, the permission of the Attorney General must be sought. However, where a person is in position to prove that he has suffered damage over and above that suffered by the general public, then he can institute such action. In *Attorney General V Kafeero Mambule*²⁵ while in the process of construction of the road, a heap soil was piled on the side of the road and as a result, the plaintiff's business at the roadside could not be accessed. It was held that the plaintiff was entitled to sue because the damage suffered by him was over and above that suffered by the general public. A climate change litigant will therefore be in position to institute an action in public nuisance if his damage is over that suffered by the general public.

Defences to Nuisance

There are some defences that are applicable to actions in of nuisance.

- **Statutory Authority**

This is a defence to an action in nuisance, whether (private or public); that the statute authorized the act or omission that constituted a nuisance, therefore, a person will not sustain an action in nuisance if for instance the oil refinery is authorized by an act of parliament and it contributes to climate change.²⁶ If the planners are to successfully raise this defence, they must show that: first, the act creating a nuisance is expressly or by necessary implication within the scope of the statutory authority; and second, the act was not performed negligently unless the statute expressly extends to the negligent execution of the authorized act or unless the exercise of reasonable care can not avoid the creation of a nuisance from performance of the authorized action.

- **Prescription**

If the nuisance has been continued for 20 years without interruption, the defendant will not be liable if he or she pleads prescriptive right to the nuisance. In *Sturges V Bridgman*, the doctor built consulting room next to the

²⁵ (1959) EA 665

²⁶ See for instance the case of *Allen V Gulf Oil* (1981) 1 All ER 353.



confectioner's workshop which had been operating for over 20 years, court held that the prescriptive right begun on the use of the room.

3.2. Riparian rights

These are rights to the use of water in a stream, river, or lake that stem from a person's property interest in or possession of the land bordering on the water. An interest in the land gives that person a right to continued flow of the water in its natural quantity and quality, undiminished and unpolluted. A person with these rights is called a riparian owner and the rights are called riparian rights.

Riparian rights are of two kinds, natural and correlative. Natural rights include those uses necessary for the existence of the riparian proprietor and his family, such as to quench thirst and for household uses.

Correlative rights are those which merely increase one's comfort and prosperity and do not rank as essential to his existence, such as commercial profit and recreation. Correlative rights must be reasonable at all times and cannot encroach or infringe unreasonably upon the use of the surface of the lake or stream by other riparians and members of the public.

Under the riparian principle, all land owners whose property is adjacent to a body of water have the right to make reasonable use of it. If there is not enough water to satisfy all users, allotments are generally fixed in proportion to frontage on the water source. These rights can not be sold or transferred other than with the adjoining land. Riparian rights include such things as the right to access for swimming, boating and fishing, the right to use water for domestic purposes, the right to view and protection of view. Riparian rights also depend upon reasonable use as it relates to other riparian owners to ensure that the rights of one riparian owner are weighed fairly and equitably with the rights of the adjacent riparian owners.

Common law riparian rights can be illustrated by the following cases

- **Whalen v. Union Bag & Paper Co.**²⁷

In this case, a new pulp mill polluted a creek. A downstream farmer, Whalen, sued the mill for making the water that passed by his land unfit for agricultural use. He had to obtain an alternative water source for his crops and animals. The trial court awarded damages of \$312 and granted an injunction, ordering the mill to end harmful pollution within one year or close operations.

²⁷ 208 N.Y. 1 (Ct.App., N.Y. 1913).



But the appellate division overturned the injunction and reduced the damages to \$100. The court noted that the mill was an important economic asset to the area. It cost over \$1 million to build and employed about five hundred people. Thus, it was worth far more than the water was to the plaintiff. However, the Court of Appeals (New York's highest court) unanimously reinstated the decision of the trial court. The court noted that although the damage to the plaintiff may be slight as compared with the defendant's expense of abating the condition, that is not a good reason for refusing an injunction. Neither courts of equity nor law can be guided by such a rule, for if followed to its logical conclusion it would deprive the poor litigant of his little property by giving it to those already rich.

- **Bunker Hill & Sullivan Mining & Concentrating Co. v. Polak²⁸**

A farmer downstream from a mining operation sued for damage to his farm caused by acids dumped in the Coeur d'Alene River, which was used by the farm. The federal appeals court held that even if the mining operation was in 'the ordinary and usual mode of mining' and even if it had a constitutional preference for access to water, it had no 'right to dump injurious and deleterious materials into a stream.'

The principle of Riparian Rights is incorporate in section 7 of the Water Act. The section provides that subject to section 8,²⁹ a person may while temporarily at any place; or being the occupier of or a resident on any land, where there is a natural source of water, use that water for domestic use, fighting fire or irrigating a subsistence garden.

In addition to the right to use water above, the occupier of land or resident on land may, with the approval of the authority responsible for the area, use any water under the land occupied by him or her or on which he or she is resident on or any land adjacent to that land. But the Act emphasizes that these rights do not per se authorise a person to construct any works.

There are however no riparian rights for undiminished groundwater flow since groundwater saturates the soil and does not flow in a visible, defined channel like surface water. Therefore, a person who pumps out water and thereby dries up a neighbour's well can not be sued in riparian rights. Nevertheless, there is some protection for the groundwater quality and quantity. Any pollution of ground water is a nuisance. Moreover, it is illegal to pump out substantial quantities of water without a permit from the Directorate of Water Development.

²⁸ 7 F.2d 583 (9th Cir., 1925)

²⁹ Under section 8, the Minister may, in relation to any water source, where the situation so requires, prescribe places from which water may be extracted for use; prescribe the time and manner in which water may be used; and at times of shortage or anticipated shortage regulate water to be used for particular purposes; temporarily or permanently prohibit the use of water from a given source on health grounds; require any person to take measures, as may be specified in the notice, to avoid, reduce or repair damage to a source of water or neighbouring land from the watering of stock.



3.3. Trespass

a) What constitutes trespass

Trespass to land occurs where a person directly enters upon another's land without permission, or remains upon the land, or places or projects any object upon the land. An intentional trespass creates liability for damages for the mere fact of intruding even if no tangible or ascertainable damage is done.

I. Ways in Which Trespass May Occur

- **Entering upon Land**

Walking onto land without permission, or refusing to leave when permission has been withdrawn, or throwing objects onto land are all example of trespass to land.

- **Trespass to the Airspace**

Trespass to airspace above the land can be committed. In *Kelsen v Imperial Tobacco Co*,³⁰ the defendant was held to have committed trespass by allowing an advertising board to project eight inches into the plaintiff's property at ground level and another above ground level.

Note that section 58 (1) of the Civil Aviation Authority Act³¹ provides that the mere overflight of an aircraft over a property at a height above the ground in accordance with authority regulations made under this Act shall not be considered trespass or nuisance. However, section 58 (2) confers a right of action in respect of physical damage caused by aircraft, unless the loss or damage was caused or contributed to by the negligence of the person who experienced the loss or damage.

- **Trespass to the ground beneath the surface**

An example of this is in the case of *Bulli Coal Mining Co v Osborne*,³² where the defendants mined from their land through to the plaintiff's land and this was held to be trespass to the subsoil.

II. Who can Sue for trespass to Land?

This tort developed to protect a person's possession of land, and so only a person who has exclusive possession of land may sue. Thus, a landlord of leased premises does not have exclusive possession, nor does a lodger or a licensee.

III. Continuing Trespass

A continuing trespass is a failure to remove an object (or the defendant in person) unlawfully placed on land. It will lead to a new cause of action each day for as long as it lasts. For example, in *Holmes v Wilson & Ors*, the defendants built supports for a road on plaintiff's land. The defendants paid damages for the

³⁰ [1957] 2 QB 334

³¹ Cap 354, Laws of Uganda, 2000.

³² [1899] AC 351



trespass, but were held liable again in a further action for failing to remove the buttresses.

b) Defences to Trespass

i. Licence

A licence is a permission to enter land and may be express, implied or contractual. A dictionary definition is as follows:

"In land law, a licence is given by X to Y when X, the occupier of land, gives Y permission to perform an act which, in other circumstances, would be considered a trespass, e.g., where X allows Y to reside in X's house as a lodger. A bare licence is merely gratuitous permission. A licence may be coupled with an interest, as where X sells standing timber to Y on condition that Y is to sever the timber; in this case the sale implies the grant of a licence to Y to enter X's land."³³

If a licensee exceeds their licence, or remains on the land after it has expired or been revoked, then he becomes a trespasser

ii. Rights of entry

A person may exercise a lawful right of entry onto land, for example:

- A private right of way granted to the defendant;
- A public right of way;
- A right given by the common law, such as the right to abate a nuisance; and
- A right of access given by statute.

iii. Acquiesces or Adverse Possession

If a trespass is actionable and no action is taken within reasonable or prescribed time limits (12 years),³⁴ the land owner may forever lose the right to seek a remedy, and may even forfeit certain property rights.

3.4. Strict liability/The Rule in Rylands v Fletcher

The notion of strict liability for harm caused by escape of dangerous substances arises from the English decision of *Rylands V Fletcher*³⁵ where it was established that:

"A person who for his purpose brings on his land anything likely to do mischief if it escapes must keep it at his peril; and if it does so is prima-facie answerable for all the damage which is a natural consequence of its escape. He can excuse himself by showing that the escape was owing to the native's default, or, perhaps was the act of God."

³³ LB Curzon, Dictionary of Law, Fourth Edition.

³⁴ See section 5 of the Limitation Act Cap 80, Laws of Uganda, 2000.

³⁵ (1868) LR. 3 HL 330



From the above laid rule, for liability to ensue, three elements must be established. First, that the defendant brought on his land something which is not naturally there and therefore is a non natural user. In determining whether or not the defendant is a non natural user, there is no hard and fast rule and therefore court will consider the circumstances of each case independently. Thus using chemicals in a residential area will be non natural use of land. However, this may not be the case with a situation where such chemicals are being used in an industrial area.

However, there are some considerations which McKenna J. laid in *Mason V Levy Auto parts of England*,³⁶ and these are: firstly, the nature of the thing brought on the land. If it is so dangerous then it is more likely that it will constitute a non natural use. However, there are situations, as in *Rylands V Fletcher*, the thing (water in this case) is not eminently dangerous but stored in large quantities so as to constitute a threat to the neighbours; secondly, the quality of storage. To what extent has the thing been kept in such a way that it does not escape; and thirdly the character of the neighbour, such that storing flammable substances in a residential area will qualify to be a non natural use of land.

The second requirement for liability is that the thing must escape from the defendant's land to the plaintiff's land. The third element is that the plaintiff must suffer damage in consequence of such escape.

- **Defences**

A number of defences have been developed to the rule in *Rylands v Fletcher*.

- a) **Consent**

The express or implied consent of the claimant to the presence of source of the danger, provided there has been no negligence by the defendant, will be a defence.

- b) **Common Benefit**

If the source of the danger was maintained for the benefit of both the claimant and defendant, the defendant will not be liable for its escape. This defence is either related to the defence of consent or the same thing. According to Winfield & Jolowicz on Tort, p 551, "common benefit seems redundant (and indeed misleading) as an independent defence".

- c) **Act of a stranger**

³⁶ (1967) 2 All ER 62

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The defendant will not be liable if a stranger was responsible for the escape. In *Rickards v Lothian*,³⁷ The defendant was held not liable when an unknown person blocked a basin on his property and caused a flood, which damaged a flat below.

d) Statutory authority

A statute may require a person or body to carry out a particular activity. Liability under *Rylands v Fletcher* may be excluded upon the interpretation of the statute.

e) Act of God

An act of God is an event which 'no human foresight can provide against, and of which human prudence is not bound to recognise the possibility'.³⁸ In *Nichols v Marsland*³⁹ where exceptionally heavy rain caused artificial lakes, bridges and waterways to be flooded and damage adjoining land. The defendant was held not liable. However, *Nichols v Marsland* was doubted by the House of Lords in *Greenock Corporation v Caledonian Railway*.⁴⁰ In this case, the corporation constructed a concrete paddling pool for children in the bed of a stream and obstructed the natural flow of the stream. Owing to a rainfall of extraordinary violence the stream overflowed at the pond and damaged the property of the plaintiffs. It was held that the extraordinary rainfall did not absolve the corp. from responsibility and that they were liable in damages.

f) Fault of the Claimant

If the escape is the fault of the claimant there will be no liability. Alternatively, there may be contributory negligence on the part of the claimant

3.5. Negligence

Negligence is the omission to do something which a reasonable man, guided upon those considerations which ordinarily regulate the conduct of human affairs would do, or doing of something which a reasonable and prudent man would not do.⁴¹ For a person to succeed under negligence, he must show that the defendant owed him a duty of care; that the defendant breached that duty and that he suffered damage as a result of such breach.

These elements can be considered separately below.

³⁷ [1913] AC 263.

³⁸ Per Lord Westbury in *Tennent v Earl of Glasgow* (1864) 2 M (HL) 22 at 26-27.

³⁹ (1876) 2 ExD 1.

⁴⁰ [1917] AC 556.

⁴¹ Per Alderson B in *Blyth V Birmingham Waterworks Co* (1856) 11 Exch 781



- **Duty of Care**

To determine whether a duty of care exists, the major question is whether it was reasonably foreseeable to the alleged wrong doer that a particular conduct or omission on his part would be likely to cause harm to persons who have suffered damage or a person or a person in the same position.

Courts in Uganda when determining the question of proximity still have regard to the famous words of Lord Atkin in *Donoghue V Stevenson*;⁴²

“You must take reasonable care to avoid acts or omissions which you can reasonably foresee would be likely to injure your neighbour. Who then in law is my neighbour? The answer seems to be persons who are closely and directly affected by my acts that I ought to have them in contemplation as being so affected when I am directing my mind to the acts or omissions which are called into question.”

- **Breach of the Duty of Care**

It must be established that the duty of care owed by the defendant to the plaintiff was breached. Whether there is breach of this duty is a question of fact. Accordingly, each case has to be determined with reference to its own circumstances. In doing so, the standard of a reasonable man is always adopted, that is; what a reasonable man would have done in the circumstances of the case. Negligence in such a case will be established if the defendant's conduct falls below that of a reasonable man.

There are however specific factors that are considered to determine whether the defendant's action fell below the reasonable man standard. These are: The magnitude of the risk or the amount of the risk which the activity presents. This has two elements; first, the likelihood of injury. That is, if it is high the defendant is expected to take adequate precautions to avert injury, unlike a situation where the possibility of harm is minimal. In *Bolton and Others V Stone*,⁴³ Lord Potter stated;

“It is not enough that the event should be such as can reasonably be foreseen. The further result that injury is likely to follow must also be such as a reasonable man would contemplate before he can be convicted of actionable negligence. Nor is the remote possibility of injury occurring is enough. There must be reasonable probability to lead a reasonable man to anticipate it. The existence of some risk is an ordinary incident of life even when all due care has been taken.”

⁴² (1932) AC 562

⁴³ (1951) 1 All ER 1078

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The second element is the seriousness of the consequences from a particular activity on the individual. If the consequences are so severe, then the magnitude of the risk is higher and the defendant will not be permitted to neglect it.⁴⁴

The second factor is the cost it takes to avert the risk. If the cost is very high and the measures are not taken, the defendant may be held to have acted as a reasonable man. But if the cost is low and the defendant did not provide such measures, to that extent he will be guilty of negligence. In *Edward Willy Kaggwa*

V A.G.,⁴⁵ Court held that in determining what was reasonable, one had to consider what precautions the country can afford. That the argument that Uganda could not afford other measures was accepted by court as correct.

- **Damage**

It is not enough that the defendant owed a duty to the plaintiff and that the duty was breached. The plaintiff must suffer injury as a result of that breach. He needs to show a causal link between the defendant's negligence and the injury suffered; that it was the defendant's act which caused injury.

The requisite causal connection will be established if it appears that the plaintiff suffered damage directly as a result of the defendant's actions. To determine whether the defendant is to be held liable under this rule the generally agreed upon test is the "but for" test. If the defendant's form of conduct is the cause of the injury, and it could not have happened "but for" such conduct, then the defendant is guilty of negligence. This points to the fact that a person is not liable in negligence if without his such conduct the harm will still have occurred.

3.6 Contribution of Common Law Actions to Environmental Protection

- a) It may be the only way to air legitimate grievances where government officials have refused to act or environmental law violators have failed to listen.
- b) It provides precedents for environmental issues.
- c) Courts offer a decision making forum that is less prone to political pressures

3.7 Limitations of Common Law Actions in Environmental Protection

⁴⁴ See for instance the case of *Paris V Stepney Borough Council* (1951) 1 All ER 42, where the one-eyed applicant who was employed by the defendants as a fitter in a garage of the respondents which presented some risk of injury to the eye but the likelihood of the injury was small such that the employer neglected providing protective measures and even there was evidence that it was not the ordinary practice of employers to provide goggles in the garages. He was injured and he became totally blind. In an action brought by him in negligence, it was held that the consequences were so severe for such a one-eyed and therefore the defendants owed him a special duty of care. Accordingly, they were not entitled to ignore such likelihood of injury.

⁴⁵ (1971) ULR 276.



- a) A private legal action is always costly. Low-income people may find litigation to be beyond their reach
- b) Private legal actions rely on the motivation and financial ability of the plaintiff.
- c) Private litigation can not replace long-term environmental planning processes
- d) Multiple polluters and each inflict low levels of damage and unlikely to be held liable when the damage is shared by many. For that reason, problems with air pollution caused by automobiles cannot be handled effectively through common law courts
- e) Collection of evidence in environmental cases requires higher scientific levels that may not be available in countries like Uganda
- f) Injuries and harms that come after long gestation periods present another challenge. Parties who can show evidence of injury or imminent harm may have a common law cause of action. However, efforts to obtain injunctions for speculative harms are not generally successful. Statutory prohibitions may be the only answer to limit actions that may cause future harms such as cancer.

TOPIC Four: Overview of the Policy and Legislative Framework for Environment in Uganda

4.1 Environmental Policy Framework in Uganda

4.1.1 The National Environment Management Policy, 1994

The National Environment Management Policy is an output of the National Environment Action Plan (NEAP) process. The overall goal of the policy is to establish sustainable social and economic development, which maintains or enhances environmental quality and resource productivity on a long-term basis that meets the needs of the present generation without compromising the ability of the future generation to meet their own needs.

Specifically, the policy seeks to meet the following objectives:

- Enhance the health and quality of life of all people in Uganda and promote long-term, sustainable socio-economic development through sound environmental and natural resource management and use;
- Integrate environmental concerns in all development policies, planning and activities at national, district and local levels, with full participation of the people;
- Conserve, preserve and restore ecosystems and maintain ecological processes and life support systems, especially conservation of national

biological diversity;

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- Optimise resource use and achieve a sustainable level of resource consumption;
- Raise public awareness to understand and appreciate linkages between environment and development; and
- Ensure individual and community participation in environmental improvement activities.

Underlying these broad policy objectives are certain key principles which will guide policy development and implementation strategies:

- Every person should have a constitutional right to live in a healthy environment and the obligation to keep the environment clean;
- The development of Uganda's economy should be based on sustainable natural resource use and sound management;
- Security of land and resource tenure is a fundamental requirement of sustainable natural resource management;
- The utilization of non-renewable resources should be optimized and where possible their life extended by recycling;
- Environmentally friendly, socially acceptable and affordable technologies should be developed and disseminated for efficient use of natural resources;
- Full environmental and social costs or benefits foregone as a result of environmental damage or degradation should be incorporated in public and private sector planning and minimised where possible;
- Priority should be given to establishing a social and economic environment which provides appropriate incentives for sustainable natural resource use and environmental management;
- An integrated and multi-sectoral systems approach to resource planning and environmental management should be put in place;
- Regular monitoring and accurate assessment of the environment should be carried out and the information widely publicized;

4.1.2 The National Policy for Conservation and Management of Wetland Resources, 1995

The overall aim of this policy is to promote the conservation of Uganda's wetlands in order to sustain their ecological and socio-economic functions for the present and future well being of the people. In support of the above aim, the policy strives to achieve the following goals:

- Establishment of principles by which wetland resources can be optimally used, and their productivity can be maintained into the future;

- End existing unsustainable exploitative practices in wetlands to avert the decline in their productivity;



- Maintain a biological diversity in wetlands either in the natural community of plants and animals or in the multiplicity of agricultural activity;
- Maintain the functions and values derived from wetland resources throughout Uganda; and
- Promote the recognition and integration of wetland functions in resource management and economic development decision making with regard to sector policies and programs such as forestry, agriculture, fisheries, wildlife and sound environmental management.

The policy in pursuance of the above goals, establishes principles on which it is to be based. These are:

- Wetland resources form an integral part of the environment and their conservation must be pursued in the context of an interaction between conservation and the overall development strategies and activities;
- Wetland conservation can only be achieved through a co-ordinate and co-operative approach involving all the concerned people and organizations in the country, including the local communities;
- It is of vital importance for wetland conservation and management that the present attitudes and perceptions of Ugandans regarding wetland be changed.

The policy makes provision for recovery of previously drained wetlands, otherwise referred to as restoration. Many wetlands have been drained or modified especially in South west and eastern Uganda. This has led to loss of many would-be valuable resources before a full assessment has been carried out. As a strategy therefore, government may require that some wetlands which have already been drained, should be allowed to regenerate. For this purpose, Government aims at restoring the soil hydration so as to re-establish the wetlands vegetation as far as is ecologically possible. Such an operation may range from rehabilitation of wetlands along distance channels in the case of lease holder, to full rehabilitation after the lease has been cancelled or eviction in case of users with no leases.

The policy lays down specific strategies which are deemed to be of great importance for the success of the policy. The policy for instance requires EIA and monitoring of activities in wetlands where they are likely to have adverse impacts on wetlands resources. Development activities in general tend to impact upon the wetlands in various ways. Assessment and evaluation of such impacts helps to minimize the economic and social costs of preventing damage before occurrence as compared to restoring a degraded wetland. The policy

therefore lays down, as strategies, that there should be a requirement that all proposed modifications and restorations on wetlands be subject to an EIA, the result of which will determine whether such restoration or modification should proceed



and if so to what extent; all planned new wetland developments be subjected to an EIA process to determine the required environmental controls; and those which have been subjected to EIAs will continuously be monitored to assess their impact on the environment and where the impact is detrimental, Government will require that such a development be halted.

4.1.3 The National Water Policy, 1995

Chapter four of the policy deals with water resources management. The overall objective of the policy in this regard is to manage and develop the water resources of Uganda in an integrated and sustainable manner, so as to secure and provide water of adequate quantity and quality for all the social and economic needs of the present and future generations with the full participation of the stakeholders.

The policy lays down strategies for instance institutional development; planning and prioritisation of water resources management issues; data collection and data dissemination; water resources management functions; development of management structures; and involvement of the private sector in water resources management.

Chapter two of the policy acknowledges that fresh water is a key strategic resource vital for sustaining life and promoting development. That rapid population growth, increased agriculture, urbanisation and industrial activities and poverty in rural and peri urban areas and habits of environmental carelessness are causing a serious depletion and degradation of the available water resources.

The policy provides that human activities have an increasing impact on the availability and conservation of water. Increasing population pressure leads to deforestation, draining of wetlands, overgrazing and intensive cultivation of the land. Changes in vegetation and cultivation practices may lead to land degradation, soil erosion and siltation of water bodies and may affect the hydrology and the water balance with the risk of inducing unfavourable micro climate changes (drought and floods) and desertification trends.

Chapter five of the policy deals with domestic water supply. In this regard, the objective of the policy is sustainable provision of safe water within easy reach and hygienic sanitation facilities, based on management responsibility and ownership by the users, to 75% of the population in rural areas and 100% of the urban population. The strategies laid for realisation of this are: technology and service provision; financing, subsidies and tariffs, management and sustainable aspects; and private sector participation.

4.1.4 The Wildlife Policy, 1999



Wildlife is one of Uganda's most significant biological resources and over the years a number of different types of protected areas have been established in Uganda to help conserve the country's wildlife and forested areas, and to encourage the country's wildlife and forested areas, and to encourage sustainable utilisation of its resources. Some of the PAs in the project districts include National Parks like Queen Elizabeth, Bwindi Impenetrable, Rwenzori Mountains and Mgahinga Gorilla National Parks; Kigezi and Kyambura Wildlife reserves. In this regard, the overall aim of the Wildlife Policy is to promote long- term conservation of the wildlife and biodiversity in a cost effective manner that maximizes the benefits of wildlife resources to people. The policy objectives include conserving the resource within the national parks and other wildlife- protected areas, and enabling the people of Uganda and the global community to derive ecological, economic, aesthetic, scientific and educational benefits. The Policy emphasizes the following key areas:

- 1 The obligation of UWA to involve local communities and to ensure that conservation contributes towards rural economies;
- 2 The obligation to consult through public meetings on the development of management plans for protected areas;
- 3 The obligation of UWA to share 20% of its entry fees with local government for the development of communities living around the protected areas; and
- 4 The granting of use rights to community groups and individuals to make use of wildlife on their land.

4.1.5 The Uganda Fisheries Policy, 2004

The goal of the policy is to ensure increased and sustainable fish production and utilisation by properly managing capture fisheries, promoting aquaculture and reducing post-harvest losses.

The objectives of the policy are:

- To secure the long-term future of the fisheries sector to ensure that it contributes in a sustainable manner to the national economy;
- To protect the biodiversity of fisheries and the life support system that defines major fisheries assets.
- To improve livelihoods and alleviate poverty in fishing communities taking into account of the special needs of women, youths and other disadvantaged groups.
- To corporate with neighbouring states in the management of shared water bodies

4.1.6 The Uganda Forestry Policy, 2001

The objective of the Uganda Forestry Policy is to establish an integrated forest

sector that achieves sustainable increases in the economic, social and environmental benefits from forests and trees by the people of Uganda,



especially the poor and vulnerable. The policy provides for the protection of Permanent Forest Estate (PRE) under government trusteeship and the development and sustainable management of natural forest on private land. This is aimed at promoting profitable and productive forests. The policy provides a wider cross section of stakeholders' participation in the management of the forest estate. This includes local government, the private sector, local communities and farmers in the conservation and sustainable use of forest biodiversity.

The policy also provides for collaborative forest management. Where people live near the government forests, there is typically a history of open-access use of these forest reserves, by individual farmers or local residents who depend on these forests for wood and non-wood products. The government administration finds it increasingly difficult to police and regulate this open access without communal responsibility. New developments in collective forest management shows that organized communities can play a key role in natural forest management and conservation in government forests, while substantially improving their livelihoods.

It also provides for urban forestry; land and tree tenure; sector co-ordination; and civil society participation in forestry resources management all of which are crucial to the development of a strong forestry sector.

4.2 Environmental Legislative Framework in Uganda

4.2.1 The 1995 Constitution

The 1995 Constitution of Uganda is the Supreme law and provides for environmental protection and conservation. It sets out the norms, standards, rights and obligations at national level. The Constitution also sets out National Objectives and Directive Principles of state policy. Principle XIII of the National Objectives and Directive Principles provides that the state shall protect important natural resources including water, wetlands, minerals, oil, fauna and flora on behalf of the people of Uganda. The State is also required to take all practical measures to promote a good water management system at all levels.⁴⁶

The Constitution also provides for sustainable environmental management under Principle XXVII, and Article 39 of the Constitution provides that every Ugandan citizen has a right to a clean and healthy environment. The constitution requires the Government or a Local Government as determined by Parliament by law, to hold in trust for the people and protect, natural lakes, rivers, wetlands, forest reserves, game reserves, national parks and any land to

be reserved for ecological and touristic purposes for the common good of all citizens⁴⁷

⁴⁶ Principle XXI.

⁴⁷ Article 237 (2) (b).



Article 245 requires Parliament, by law, to provide for measures intended to protect and preserve the environment from abuse, pollution and degradation; to manage the environment for sustainable development; and to promote environmental awareness.

The Land Act Cap 227

The Land Act under section 43 provides that a person who owns or occupies land shall manage and utilise the land in accordance with the Forests Act, the Mining Act, the National Environment Act, the Water Act, the Uganda Wildlife Act and any other law.

Section 44 provides for the public trust doctrine by providing that the Government or a local government shall hold in trust for the people and protect natural lakes, rivers, ground water, natural ponds, natural streams, wetlands, forest reserves, national parks and any other land reserved for ecological and touristic purposes for the common good of the citizens of Uganda and the Government or a local government shall not lease out or otherwise alienate any natural resource referred to in this section. However, the Government or a local government may grant concessions or licences or permits in respect of a natural resource referred to above.

Section 70 provides that subject to section 44, all rights in the water of any natural spring, river, stream, watercourse, pond, or lake on or under land, whether alienated or unalienated, shall be reserved to the Government; and no such water shall be obstructed, dammed, diverted, polluted or otherwise interfered with, directly or indirectly, except in pursuance of permission in writing granted by the Minister responsible for water or natural resources in accordance with the Water Act.

4.2.2 The concept of a framework environmental legislation

Framework environmental legislation has the guiding principle of ensuring sustainable development which will use resources without depleting them for the benefit of both the present and future generations. The objectives of the framework legislation are twofold: to provide a planning framework, set standards and coordinate for all environmental-related issues in the country; and to strengthen the sectoral laws. Sectoral laws are enacted in consultation with the lead agencies to ensure coordination and effectiveness. The framework law must be in harmony with society's need to achieve better material standards, reduce poverty and achieve sustainable development.

Effective framework environmental legislation has to emphasize the following areas:

- Enactment and implementation of laws and regulations for specific sectors regarding air quality, water quality, disposal of effluent and solid

wastes and conservation and utilization of resources



- Creation of rights and obligations for the people to live in a decent and healthy environment, including rights to bring actions to prevent or stop activities that are likely to adversely affect the environment and seek to redress the damage caused to the environment.
- Requirement of EIA to be mandatory for all activities likely to have significant effect on the environment
- Establishment and enforcement of viable environmental standards on the maintenance of air, water, soil quality and standards for noise, smell, atmospheric pollution and natural resources;
- Establishment and enforcement of viable environmental standards for sound management of municipal and hazardous wastes, chemicals and other dangerous products; and
- Discontinuance of harm and, compensation of individuals harmed, and restoration of the environment where the harm has already occurred.

The framework legislation on environmental protection in Uganda is the National Environment Act.

4.2.3 Sectoral Environmental Legislation in Uganda

a) The Water Act Cap 152

The objectives of this Act are –

- a) to promote the rational management and use of the waters of Uganda through-
 - i. the progressive introduction and application of appropriate standards and techniques for the investigation, use, control, protection, management and administration of water resources;
 - ii. the coordination of all public and private activities which may influence the quality, quantity, distribution, use or management of water resources;
 - iii. the coordination, allocation and delegation of responsibilities among Ministers and public authorities for the investigation, use, control, protection, management or administration of water resources;
- b) to promote the provision of a clean, safe and sufficient supply of water for domestic purposes to all persons;
- c) to allow for the orderly development and use of water resources for purposes other than domestic use, such as the watering of stock, irrigation and agriculture, industrial, commercial and mining uses, the generation of hydroelectric or geothermal energy, navigation, fishing, preservation of flora and fauna and recreation in ways which minimise harmful effects to the environment;

- d) to control pollution and to promote the safe storage, treatment, discharge and disposal of waste which may pollute water or otherwise harm the environment and human health.

All rights to investigate, control, protect and manage water in Uganda for any use is vested in the Government. Section 7, the Act provides for general rights to use water. It provides that a person may, while temporarily at any place; or being the occupier of or a resident on any land, where there is a natural source of water, use that water for domestic use, fighting fire or irrigating a subsistence garden. In addition to the right to use water stated above, the occupier of land or resident on land may also, with the approval of the authority responsible for the area, use any water under the land occupied by him or her or on which he or she is resident on or any land adjacent to that land.

Section 10 provides for the establishment of the Water Policy Committee with the following functions.

- a) to assist the Minister in the coordination of hydrological and hydro geological investigations;
- b) to coordinate the preparation, implementation and amendment of the water action plan and to recommend the water action plan to the Minister;
- c) at the request of the Minister, to advise any other Minister on issues of policy relevant to the investigation, use, control, protection, management or administration of water and any other issue that may be referred to it;
- d) to review the law relating to water and advise the Minister on any amendments that may be required for the improvement or better administration of that law;
- e) to advise the responsible Minister, as the case may require, on any dispute between agencies involved in water management that may be referred to it; and
- f) to undertake any other functions conferred upon it under this Act or referred to it from time to time.

The Water Act also makes provision for water permits. According to section 18, it is not allowed to construct or operate any works unless authorized to do so by a permit granted by the director. A holder of a permit is not permitted to cause or allow any water to be polluted; and has to prevent damage to the source from which water is taken or to which water is discharged after use. The holder is also required to take precautions to ensure that no activities on the land where water is used result in the accumulation of any substance which may

render water less fit for the purpose for which it may be reasonably used;
observe conditions



prescribed by regulations made under this Act; and observe any special condition that may be attached to the permit.⁴⁸

Where in the opinion of the director the water available in an area is, or is likely to become, insufficient in quantity or quality for the needs of the persons using or seeking to use it from that source, the director may, by notice in writing to the holder of a water permit for that area, suspend or vary the water permit.⁴⁹

The water permit granted under this Act can be cancelled by the director where in his or her opinion the holder has: failed to comply with any express or implied condition to which the water permit is subject; taken or used more water than he or she is entitled to take in any period; taken or used water for a purpose other than that for which he or she is entitled; failed to comply with any provision of this Act; not made full beneficial use of the pen-nil within the two preceding years.⁵⁰

The Act also prohibits pollution. It provides that a person commits an offence who, unless authorised under the Act, causes or allows - (a) waste to come into contact with any water; (b) waste to be discharged directly or indirectly into water (c) water to be polluted.⁵¹ A person wishing to discharge waste may apply to the director for a waste discharge permit in the prescribed manner.

The Uganda Wildlife Act Cap 200

The objectives of this Act are: to provide for sustainable management of wildlife; to consolidate the law relating to wildlife management; and to establish a coordinating, monitoring and supervisory body for that purpose. The Uganda Wildlife Authority has been created as a body corporate. The Act gives the functions of the Authority, which among others include the promotion of public participation in the management of wildlife.

The Act provides that the ownership of every wild animal and wild plant existing in its wild habitat in Uganda is vested in the Government on behalf of, and for the benefit of, the people of Uganda. Where any wild plant or wild animal is lawfully taken by any person, the ownership of that plant or animal shall, subject to the Act, in that case vest in that person. If any protected species is lawfully taken under a permit or a licence issued or wildlife use right granted or issued

⁴⁸ See section 20 of the Act.

⁴⁹ See section 22 of the Act.

⁵⁰ Section 25 of the Act.

⁵¹ Section 31.

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under this Act, the ownership of that animal or plant also, subject to this Act and to the terms and conditions of the licence, vest in the licensee or right holder.⁵²

The Act lays down the procedure for Declaration of wildlife conservation areas.⁵³ The Minister may, after consultation with the local government council in whose area a proposed wildlife conservation area falls and with the approval of Parliament signified by its resolution, by statutory instrument, declare an area of land or water to be a wildlife conservation area. Before making a declaration, the Minister must also ensure that an environmental impact study in accordance with the National Environment Act and such other study as may be prescribed has been conducted. This study has to investigate and make a report on the social and ecological consequences of the declaration of the proposed wildlife conservation area. The report is submitted to the Minister, together with the recommendation of the board on the proposed declaration, within ninety days of the study being undertaken or such other longer period as the Minister may in writing specify.

The Act creates a number of offences in the conservation areas. Any person who in any wildlife conservation area unlawfully - (a) hunts, takes, kills, injures or disturbs any wild plant or animal or any domestic animal; (b) takes, destroys, damages or defaces any object of geomorphologic, archaeological, historical, cultural or scientific interest, or any structure lawfully placed or constructed; (c) prepares land for cultivation, prospects for minerals or mines or attempts any of these operations; (d) drives, conveys or introduces any wild animal into a wildlife conservation area; (e) willfully drives, conveys or introduces any domestic animal into a national park or negligently permits any domestic animal, of which he or she is for the time being in charge, to stray into a wildlife conservation area; (f) starts or maintains a fire without lawful authority, commits an offence.⁵⁴ A person also commits an offence if, except in accordance with this Act, enters into or resides in, or attempts to enter into or reside in, any national park, wildlife reserve or any other protected area.⁵⁵

Wildlife use rights.

A wildlife use right means a right granted to a person, community or organisation to make some extractive utilization of wildlife in accordance with a grant under this Act. The following wildlife use rights are established under section 29 of the Uganda Wildlife Act.

- a) hunting: class A wildlife use right;
- b) farming: class B wildlife use right;

⁵² Section 3 of the Uganda Wildlife Act.

⁵³ Section 17

⁵⁴ Section 21.

⁵⁵ Section 22.



- c) ranching: class C wildlife use right;
- d) trading in wildlife and wildlife products: class D wildlife use right;
- e) using wildlife for educational or scientific purposes including medical experiments and developments: class E wildlife use right;
- f) general extraction; class F wildlife use right.

The wildlife use rights are granted upon application by the person, community or lead agency to the authority for one or more wildlife use rights. The application has to be accompanied by a certificate which states that the applicant has informed all adjacent owners and occupiers of land of his or her application; the nature of the representations received from all those to whom information about the application was sent; the changes, if any, made to the application as a result of the representations made; and such other matters as may be prescribed or as are relevant to the application.⁵⁶ A wildlife use right can be revoked by the authority,⁵⁷ surrendered by the holder,⁵⁸ and transferred⁵⁹ subject to the restrictions stipulated under the Act.

The Act makes the following prohibitions against acts affecting protected species. Prohibition on the use of fire, prohibition of hunting of dependent young; regulation of weapons used in hunting; prohibition of hunting after darkness; prohibition of use of motor vehicles, aircraft and other equipment; regulations on the use of domestic animals as an aid; regulations on the use of baits, devices, etc.

The National Forestry and Tree Planting Act, 8/2003

The purposes of this Act are –

- a) to create an integrated forest sector that will facilitate the achievement of sustainable increases in economic, social and environmental benefits from forests and trees by all the people of Uganda;
- b) to guide and cause the people of Uganda to plant trees;
- c) to ensure that forests and trees are conserved and managed in a manner that meets the needs of the present generation without compromising the rights of future generations by safeguarding forest biological diversity and the environmental benefits that accrue from forests and trees;
- d) to promote the improvement of livelihoods through strategies and actions that contribute to poverty eradication;

⁵⁶ Section 31.

⁵⁷ Section 39.

⁵⁸ Section 40.

⁵⁹ Section 41.

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- e) to encourage public participation in the management and conservation of forests and trees;
- f) to facilitate greater public awareness of the cultural, economic and social benefits of conserving and increasing sustainable forest cover;
- g) to promote the decentralisation and devolution of functions, powers and services within the forest sector; and
- h) to ensure that environmental benefits, costs and values are reflected in strategies and activities relating to forestry.

The responsibility for the management of forests in Uganda is placed on the government and local governments. The Government or local government is required to hold in trust for the people and protect forest reserves for ecological, forestry and tourism purposes for the common good of the citizens of Uganda. In furtherance of the trust obligations and in furtherance of the right to a clean and healthy environment, any person or responsible body may bring an action against a person - (a) whose actions or omissions have had or are likely to have a significant impact on a forest; or (b) for the protection of a forest.⁶⁰

Forest Reserves

Under the Act, forests are classified as - (a) central forest reserves; (b) local forest reserves; (c) community forests; (d) private forests; and (e) forests forming part of a wildlife conservation area declared under the Uganda Wildlife Act, Cap 200.

Declaration of central forest reserve

The Minister may, on the advice of the Board after consultation with the local council and the local community in whose area the proposed forest reserve is to be located; and with the approval of Parliament signified by its resolution, by statutory order, declare an area to be a central forest reserve.⁶¹ The Minister before making an order has to:

- a) give simultaneous notice of the proposed declaration in the Gazette, in an appropriate print media, and in any other media that is likely to draw the matter to the attention of all interested persons;
- b) consult with the local community through public meetings and other means that will offer the local community an effective opportunity to express their views concerning the declaration of the reserve;
- c) ensure that an environmental impact assessment is carried out;

and

⁶⁰ Section 5 of the National Forestry and Tree Planting Act.

⁶¹ Section 6.



- d) where the land on which the proposed forest reserve is to be situated is private land or land in which any person has an interest, acquire the land in accordance with the Constitution, the Land Acquisition Act, Cap 226 and the Land Act, Cap 227.⁶²

The Minister in the notice issued has to identify the location of the land on which the proposed central forest reserve is to be situated, and the approximate area of the land; include a summary of the proposed management plan for the forest reserve; and invite written comments and representations on the proposed declaration to be made within ninety days after the date of publication of the notice in the Gazette.

Declaration of local forest reserve

The Minister may at the request of the local council in whose area the proposed reserve is to be situated; and with the approval of Parliament signified by its resolution, by statutory order, declare an area to be a local forest reserve. The Minister has to specify a local government as a responsible body for the forest reserve in trust for the people of Uganda, and with effect from the commencement of the order or from a date specified in the order, the management, maintenance and control of the local forest reserve shall be the responsibility of that local government.⁶³

The Minister also, before making the order give simultaneous notice of the proposed declaration in the Gazette, in an appropriate print media, and in any other media that is likely to draw the matter to the attention of all interested persons; consult with the local community through public meetings and other means that will offer the local community an effective opportunity to express their views concerning the declaration of the forest reserve; ensure that an environmental impact assessment is carried out; and where the land on which the proposed forest reserve is to be situated is private land or land in which any person has an interest, acquire the land in accordance with the Constitution, the Land Acquisition Act and the Land Act.⁶⁴

Declaration of community forest

The Minister may after consultation with the District Land Board and the local community; and upon approval by resolution of the District Council, by statutory order, declare an area within its Jurisdiction to be a community forest. The Minister has, in every order declaring a community forest, to specify a responsible body for the community forest, and with effect from

the

⁶² Section 7.

⁶³ Section 9.

⁶⁴ Section 10.

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commencement of the order or from a date specified in the order, the management, maintenance and control of the community forest shall be the responsibility of that body. An area declared for use as a community forest is not be used for any other purposes without the approval by resolution of the District Council and written consent of the Minister.⁶⁵

Private natural forests

A person may register with the District Land Board, a natural forest situated on land owned in accordance with the Land Act Cap 227, or a forest or land in respect of which a licence is granted in accordance with this Act. All forest produce in a natural forest so registered belongs to the owner of the forest and may be used in any manner that the owner may determine, except that forest produce shall be harvested in accordance with the management plan and regulations made under this Act. A District Forest Officer may issue directions to the owner of a plantation forest whether registered under this section or not, requiring the owner to manage the forest in a professional and sustainable manner.⁶⁶

Private forest plantations

A person may register with the District Land Board, a plantation forest situated on land owned in accordance with the Land Act Cap 227, or a forest or land in respect of which a licence is granted in accordance with this Act. All forest produce in a plantation forest registered pursuant to this provision belongs to the owner of the plantation and may be used in any manner that the owner may determine, except that forest produce has to be harvested in accordance with the management plan and regulations made under this Act.⁶⁷

Management plan

The Act requires the responsible body to prepare a management plan and, in the case of a forest reserve or community forest, the plan shall be prepared in consultation with the local community. A management plan shall contain a description of all matters relating to the forest, the forest produce and the use currently being made of the forest produce; state the type of activities to be carried out in the forest; state the management objectives of the forest; state the measures to be taken for the sustainable management of the forest, and, except in the case of a private forest, the involvement of local communities in the management of the resources; state the resources likely to be available to enable the management plan to be executed; and contain any other information as the Minister may prescribe.⁶⁸

⁶⁵ Section 17

⁶⁶ Section 21

⁶⁷ Section 22.

⁶⁸ Section 28.

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Prohibited activities

The Act prohibits any person, except, for forestry purposes and in accordance with a management plan, or in accordance with a licence granted under this Act, in a forest reserve or community forest to-

- (a) cut, take, work or remove forest produce;
- (b) clear, use or occupy any land for -
 - (i) grazing;
 - (ii) camping;
 - (iii) livestock farming;
 - (iv) planting or cultivation of crops;
 - (v) erecting of a building or enclosure; or
 - (vi) recreational, commercial, residential, industrial or hunting purposes;
- (c) collect biotic and abiotic specimens; or
- (d) construct or re-open a road, track, bridge, airstrip, or landing site.

The Act however, subject to the management plan, allow members of a local community in a forest reserve or community forest, to cut and take free of any fee or charge, for personal domestic use in reasonable quantities, any dry wood or bamboo.⁶⁹

Administration and Institutional Arrangements under the Act

The Minister Responsible for Forests

The Minister is responsible for policy formulation and planning; and ensuring the implementation of functions connected with the implementation of the forestry policy, the National Forest Plan and this Act.⁷⁰ For the purposes of ensuring the implementation of national policies with respect to the forest sector and adherence to performance standards by local governments, the Minister is responsible for inspecting, monitoring and co-ordinating Government initiatives and policies in the forest sector as they apply to local governments; co-ordinating and advising persons and organizations in relation to forest projects involving direct relations with local governments; and assisting in the provision of technical advice, support, supervision and training to local governments to enable them to carry out the delivery of forestry services in their respective areas, and to develop their capacity to manage local forest reserves and community forests.⁷¹

District Forestry Office

A District Council in accordance with the Local Governments Act, Cap 243, is required to establish a District Forestry Office, which shall be funded by the

⁶⁹ Section 33

⁷⁰ Section 46

⁷¹ Section 47

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Government. A District Council shall appoint a District Forestry Officer and such other officers, as the Government may determine, to run the District Forestry Office. The functions of a District Forestry Officer are: to advise the District Council on all matters relating to forestry; to liaise with the Authority and other lead agencies on matters relating to forestry; to promote forestry awareness in the district; to promote the planting of trees; to undertake duties involved in the management of local forest reserves; to advise and support the management of community forests; to assist in the development and provision of advisory services relating to private forests; to cause to be prosecuted, any person willfully destroying any forest resources in contravention of this Act.⁷²

National Forestry Authority

Section 52 establishes the National Forestry Authority with a number of functions following functions.⁷³

Forestry Committees

The National Forestry Authority is empowered under the Act, consultation with the respective local governments, to establish Forestry Committees whose functions include:

- to inform the Authority of the ideas, desires and opinions of the people in the respective areas on all matters relating to the conservation and use of the central forest reserves;
- to assist local communities to benefit from the central forest reserves;
- to advise the Authority on the implementation of its functions under this Act; and
- to perform such other functions as the Authority may require or delegate to it.

TOPIC FIVE: Institutional Framework for Environmental Management in Uganda

5.1 The Role of Central Government

The central government has several roles to play in environmental management. The National Objectives and Directive Principles of State Policy impose several obligations on the state/ central government e.g.

- Protect important natural resources, including land, water, wetlands, minerals, oil, fauna and flora on behalf of the people of Uganda;
- Take all practical measures to promote a good water management system at all levels;

⁷² Section 48

⁷³ See the following Chapter.



- Promote sustainable development and public awareness of the need to manage land, air, water resources in a balanced and sustainable manner for the present and future generations;
- Take possible measures to prevent or minimize damage and destruction to land, air and water resources resulting from pollution or other causes;
- Promote and implement energy policies that will ensure that people's basic needs and those of environmental preservation are met;
- Create and develop parks, reserves and recreation areas and ensure the conservation of natural resources; and
- Promote the rational use of natural resources so as to safeguard and protect the bio-diversity of Uganda.

The substantive provisions of the constitution impose further obligations on the state, e.g.

- Respect the fundamental rights (including the right to a clean and healthy environment) guaranteed under the constitution (article 20);
- Hold in trust for the people and protect, natural lakes, rivers, wetlands, forest reserves, game reserves, national parks and any land to be reserved for ecological and touristic purposes for the common good of all citizens (article 237 (2) (b));
- Regulate the use of land (article 242).

5.2 The Role of Parliament

Article 245 requires Parliament, by law, to provide for measures intended to protect and preserve the environment from abuse, pollution and degradation; to manage the environment for sustainable development; and to promote environmental awareness.

5.3 The Role of NEMA

The National environment Management Authority (NEMA) is established under section 4 of NEA as the principal agency in Uganda for the management of the environment to coordinate, monitor and supervise all activities in the field of the environment. NEMA has the following roles to play in environmental management.

- i. Coordinate the implementation of Government policy and the decisions of the policy committee;
- ii. Ensure the integration of environmental concerns in overall national planning through coordination with the relevant Ministries, departments and agencies of the Government;
- iii. Liaise with the private sector, intergovernmental organisations, nongovernmental agencies and governmental agencies of other States on

issues relating to the environment;



- iv. Propose environmental policies and strategies to the policy committee;
- v. Initiate legislative proposals, standards and guidelines on the environment in accordance with this Act;
- vi. Review and approve environmental impact assessments and environmental impact statements submitted in accordance with this Act or any other law;
- vii. Promote public awareness through formal, nonformal and informal education about environmental issues;
- viii. Undertake such studies and submit such reports and recommendations with respect to the environment as the Government or the policy committee may consider necessary;
- ix. Ensure observance of proper safeguards in the planning and execution of all development projects, including those already in existence that have or are likely to have significant impact on the environment determined in accordance with Part V of this Act;
- x. Undertake research and disseminate information about the environment;
- xi. Prepare and disseminate a state of the environment report once in every two years;
- xii. Mobilise, expedite and monitor resources for environmental management;
- xiii. Perform such other functions as the Government may assign to the authority or as are incidental or conducive to the exercise by the authority of any of the functions provided for under NEA.

5.4 The Role of Lead Agencies

- **Uganda Wildlife Authority**

The Uganda Wildlife Authority (UWA) is established under section 4 of the Uganda Wildlife Act as a body corporate with perpetual succession and a common seal. The roles of UWA in environmental management are:

- a) Ensure the sustainable management of wildlife conservation areas;
- b) Develop and recommend policies on wildlife management to the Government;
- c) Coordinate the implementation of Government policies in the field of wildlife management;
- d) Identify and recommend areas for declaration as wildlife conservation areas and for the revocation of such declaration;
- e) Develop, implement and monitor collaborative arrangements for the management of wildlife;
- f) Establish management plans for wildlife conservation areas and for wildlife populations outside wildlife conservation areas;
- g) Establish policies and procedures for the sustainable utilization of wildlife by and for the benefit of the communities living in proximity to

wildlife;

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- h) Control and monitor industrial and mining developments in wildlife protected areas;
- i) Monitor and control problem animals and provide technical advice on the control of vermin;
- j) Control internal and external trade in specimens of wildlife;
- k) In consultation with other lead agencies, to control, develop or license the development of tourist facilities in wildlife protected areas;
- l) Consider reports from district wildlife committees and make necessary comments and decisions;
- m) Promote the conservation of biological diversity *ex situ* and to contribute to the establishment of standards and regulations for that purpose;
- n) Promote scientific research and knowledge of wildlife and wildlife conservation areas;
- o) Disseminate information and promote public education and awareness of wildlife conservation and management;
- p) Prepare an annual report on the state of wildlife and such other reports as may be prescribed;
- q) Encourage training in wildlife management;
- r) Charge fees for such services as it provides and for the licences, rights and other permission that it may grant;
- s) Perform any other functions directed by the Wildlife Act to be performed by the Authority.

- **National Forestry Authority**

The National Forestry Authority is established under section 52 of the National Forestry and Tree planting Act as a body corporate. The functions of the Authority are

- i. To develop and manage all central forest reserves;
- ii. To identify and recommend to the Minister, areas for declaration as central forest reserves, and the amendment of those declarations;
- iii. To promote innovative approaches for local community participation in the management of central forest reserves;
- iv. To prepare and implement management plans for central forest reserves and to prepare reports on the state of central forest reserves and such other reports as the Minister may require;
- v. To establish procedures for the sustainable utilization of Uganda's forest resources by and for the benefit of the people of Uganda;
- vi. To co-operate and co-ordinate with the National Environment Management Authority and other lead agencies in the management of Uganda's forest resources;

- vii. In conjunction with other regulatory authorities, to control and monitor industrial and mining developments in central forest reserves;



- viii. In consultation with other lead agencies, to develop, or control the development of tourist facilities in central forest reserves;
- ix. To enter into an agreement or other arrangement with any person, for the provision of forestry services, subject to such charges as may be agreed upon;
- x. To carry out or commission research for the purposes of conservation, development and utilisation of forests, and for the conservation of biological diversity and genetic resources; and
- xi. To ensure the training of forestry officers and other public officers in the development, and sustainable management of forests.

The Authority may, in addition to the functions specified above, perform any of the following functions in accordance with a contract entered into for the purpose, and subject to such charges as may be agreed upon –

- a. Inspect, monitor and co-ordinate local governments in the management of their respective local forest reserves, and produce reports on the state of local forest reserves as the Minister may require;
- b. Provide technical support and guidance to District Forest Officers in their delivery of forestry advisory services relating to community forests, private forests, the promotion of tree planting, growing and forestry awareness;
- c. Supervise and train local governments in the, implementation of the provisions of this Act relating to the planting, protection and conservation of trees and forests;
- d. Advise on innovative approaches for local community participation in the management of local forest reserves;
- e. Advise on, and support the preparation of management plans for local forest reserves, private forests and other forests on private land;
- f. In conjunction with other lead agencies, monitor and guide the development of tourist facilities in local forest reserves, private forests and other forests on private land; and
- g. Liaise with the National Environment Authority in the protection of Uganda's forest resources, and the evaluation of environmental impact assessments undertaken in accordance with section 38.

• **Wetlands Inspection Division**

In 1989 the Uganda Government established the National Wetlands Conservation and Management Programme (NWP) to develop policies and implementation strategies for the sustainable management of Uganda's wetlands. This came in the wake of a slowly emerging realisation in

Government circles and civil society that wetlands are extremely important ecosystems which contribute considerably



to the national economy and rural livelihoods. During its ten year existence the NWP has been instrumental in assisting the Government of Uganda to make advances and improvements in the management of her wetlands and the wetland natural resources. During its first ten years, the NWP was implemented on a project basis within the Ministry of Natural Resources, and later the Ministry of Water, Lands and Environment. From the outset, NWP efforts were directed towards policy formulation and development, and in 1995 the Government endorsed the National Policy for the Conservation and Management of Wetland Resources. In fulfilment of this policy an institutional framework has been established centred at present on the Wetlands Inspection Division of the Ministry of Water, Lands, and Environment.

The Wetlands inspection Division is required to:

- a) Make an inventory of all wetlands. The inventory show for each wetland location of the wetland; type of fauna and flora; the soil and hydrological characteristics; the discharge and composition of water; the volume, flow and quality of water where possible; the existing uses; the density of population in the wetland catchment drawing attention especially those most dependant on the wetland.
- b) Periodically inspect the wetlands to determine the necessity for revision or correction of the inventory on wetlands
- c) Register change in the boundaries of wetlands on maps in the inventory
- d) To cause meetings of local environment committees to be convened within the vicinity of a wetland prior to making any decision affecting the wetland
- e) Publish in every five years the inventory of wetlands reflecting the current state of wetlands included in the inventory.
- f) In consultation with the Executive Director (of NEMA), grant temporary permits for the use of a wetland where there is need to irrigate an area pending a construction; there is need to use water for emergency situations pending the availability of alternative sources of supply; the wetland is needed for construction of a road, a building or other infrastructure; a special research project requires the use of the wetland for a certain period of time; or where there is an unforeseen delay in the use of the wetland pending the issuance of a permit.
- g) It bears the main responsibility for discharging the functions allotted to central line ministries by the Constitution and the Local Governments Act, namely: formulation of policy; setting of standards and guidelines; supervision and monitoring; technical support; and resource mobilization.
- h) Liaising with and building the capacity of other agencies and in particular local governments and national government agencies to deal with wetlands issues within their jurisdiction.

- i) Ensuring integration of wetlands issues into policies and strategies of other sectors - e.g. agriculture; forestry; fisheries; water, industry, rural and urban planning.
- j) Programming the strategy by preparing medium-term (three-year) plans, annual operations plans, etc. in collaboration with other implementation partners.
- k) Work at national level in close co-operation with many other agencies, including: ministries, directorates, departments responsible for sectors affecting and affected by wetlands (e.g. NEMA, agriculture; trade and industry; tourism; forestry; water); statutory and parastatal bodies concerned with wetlands (e.g. Uganda Wildlife Authority; National Water and Sewerage Corporation; Kampala City Council; Uganda Investment Authority); international and national NGOs.

- **Directorate of Water Development**

The Directorate of Water Development (DWD) is responsible for the following:

- a) Issue, vary and cancel water permits
- b) Review of the water sector legislation and regulations and develop water quality standards;
- c) Formulate national policies for water resources
- d) Decentralisation of water resources management
- e) Policy formulation for international waters and water use conflicts
- f) At the district level, plan water resources utilization in conformity with national priorities and plans
- g) Monitor adherence to plans, regulations, standards and permits and undertake necessary enforcement actions
- h) At the local level, facilitate the development of community/ water user organisations for water supply and sanitation management, maintenance, water use regulations and monitoring of catchments, including wetlands.

5.5 The Role of Courts

Article 50 of the Constitution provides that any person who claims that a fundamental or other rights or freedom guaranteed under this Constitution has been infringed or threatened, is entitled to apply to a competent court for redress which may include compensation. Courts therefore have the pivotal role to play in the enforcement of environmental laws and rights.

Article 126 (2) (e) of the Constitution requires the courts in adjudicating cases of both a civil and criminal nature, the courts, subject to the law, do justice to all irrespective of their social or economic status; not to delay justice; to award adequate compensation to victims of wrongs (including environmental wrongs); and administer substantive justice without undue regard to technicalities.

The role of courts in environment management and law enforcement can be summarized as follows:

- Interpreting rules and provisions
- Creating formal law by acknowledging customary law for environmental protection
- Moving from written principles to applied principles of law (acting as “midwife” of law by crossing the threshold from theory to practice)
- Defining public interest by interpreting and applying law
- Arbitration and dispute settlement
- Strengthening compliance with law through the strengthening of the system of liabilities
- Strengthening compliance through building trust and incentives which have a priori effects of compliance enforcement
- Ensuring compliance and the incorporation of international agreements into domestic law
- Defining of pre-existing rights (such as indigenous rights which may be raised on the international level and thus influence domestic courts and legislative systems)

5.6 The Role of Civil Society

Civil society organisations like Non-Governmental Organisations (NGOs) provide a pivotal role in mobilising and sensitizing the masses about environmental issues. Indigenous community-based NGOs are important instigators of the local community projects, and valuable teachers and trainers in support of government programmes at the local level. They therefore supplement the efforts of the public sector and help in ensuring that the concerns of the underprivileged are incorporated in the national development process. Civil society organisations can be instrumental in reaching the grassroots.

At the national level, the NGOs can act as advisors the NEMA in their areas of specialization. NGOs also provide a convenient and effective way of administering community targeted incentives, and facilitate mobilization for environmental education and awareness programmes.

NGOs play a significant role in environmental litigation by bringing actions on behalf of the marginalized that may not be in position to access courts law through what is commonly known as public interest litigation.⁷⁴ The role of NGOs

⁷⁴ See for the cases of British American Tobacco (BAT) V The Environmental Action Network (TEAN) HCCS No. 27 of 2003 (Arising from Misc. Applic.

No. 70 of 2002), Greenwatch & Advocates Coalition for Development and Environment (ACODE) V Golf Course Holdings Ltd Miscellaneous Application No.390 of 2001 (Arising from HCCS No.834 of 2000), and National Association of Professional Environmentalists V AES Nile Power Ltd, Miscellaneous Cause No. 60 of 1999



in this respect is buttressed by a strong legal framework for institution of such suits like article 50 of the Constitution, section 3 and 71 of NEA and section 5 of the National Forestry and Tree Planting Act, 2003. The implication of these provisions will be considered in details latter.

5.7 The Role of the Public

Citizens are one of a nation's greatest resources for enforcing environmental laws and regulations. They know the country's land and natural attributes more intimately than a government ever will. Their number makes them more pervasive than the largest government agency. And because citizens work, play, and travel in the environment, each has a personal stake in its beauty, health, and permanence. Their day-to-day observations give them access to information about environmental conditions that the government could never obtain. Involving citizens in environmental enforcement encourages productive use of this information.

Avenues for public participation in enforcement are many and varied. Some require special expertise, and some require only energy and common sense. Some involve working alongside the government, some place the citizen in the shoes of the government, and some call for citizens to oppose the government's activities. Some require extensive financial expenditures, and some cost only time.

The right to a clean and healthy environment comes with it an obligation on the public to maintain and enhance the environment and inform the authority or the local environment committee of all activities and phenomena that may affect the environment significantly (section 3 of NEA and section 5 of the National Forestry and Tree Planting Act). Briefly, the roles of the public are as follows:

- Collecting information for use in enforcement of environmental law;
- Participation in Government regulatory or enforcement action to ensure that they are well-informed and effective;
- Recourse to courts when Government is unwilling or unable to Act (article 50 (2) of the Constitution). For example, citizens may go to court to prompt tardy government regulatory action. The defendant in such a case would be the responsible government agency, in its capacity as a regulator;

TOPIC SIX: Tools of Enforcing Environmental Law

6.1 Environmental Impact Assessment

Environmental Impact Assessment (EIA) is a systematic examination conducted to determine whether or not the proposed project will have adverse impact on the environment. EIAs are an essential management tool in ensuring

environmentally sound development planning in any society. It is a process for



examining, analyzing and assessing proposed activities in order to maximize the potential for environmentally sound and sustainable development. The EIA process is designed to ensure that (i) the appropriate government authorities have fully identified and considered the environmental effects of proposed activities, as well as alternatives that avoid or mitigate the environmental effects, and (ii) affected citizens have an opportunity to understand the proposed project or policy and to express their views to decision-makers in advance.

The Environment Management Policy recognizes that assessment and evaluation of development activities and land use practices that have impacts on the environment is essential. In this respect, the policy aims to provide a system of EIA and environmental monitoring so that adverse environmental impacts can be foreseen, eliminated or mitigated.

The policy lays down strategies in relation to EIA. These are, to: create by law an EIA process which requires, as appropriate, EIAs, EISs and EAs for all private and public development projects; lodge the EIA oversight function in the National Environment Management Authority (as approved) but leave implementation to the relevant line ministries and departments; and develop EIA capacity/capability in sectoral ministries and departments. The commitment to make laws for EIA is a significant step towards sustainable management of wetlands because various laws have been developed that mitigate the would have been adverse impacts on the wetlands by requiring development in wetlands to be subject to EIA.

Section 19 of NEA requires a developer of a project described in the Third Schedule to the Act to submit a project brief to the lead agency, in the prescribed form and give the prescribed information. Under the third schedule, generally, an activity out of character with its surrounding; any structure of a scale not in keeping with its surroundings; or major changes in land use are to be subject to EIA.

EIA is required to be undertaken by the developer where the lead agency, in consultation with the Executive Director, is of the view that the project may have an impact on the environment; is likely to have a significant impact on the environment; or will have a significant impact on the environment.⁷⁵

The EIA required above shall be appropriate to the scale and possible effects of the project, and accordingly where the project may have an impact on the environment, an environmental impact review shall be conducted; where the project is likely to have an impact on the environment, an environmental

impact evaluation shall be conducted; or where the project will have a significant impact on the environment, an environmental impact study shall be conducted.⁷⁶

⁷⁵ *NEA*, Section 19 (3).

⁷⁶ *Ibid*, Section 19 (5).



Where the lead agency, in consultation with the Authority, is satisfied that an environmental impact review or an environmental impact evaluation conducted as stated above does not disclose possible significant impact on the environment, it may approve the environmental aspects of the project. However, where the lead agency, in consultation with the Authority is satisfied, after considering the environmental impact review or the environmental impact evaluation, that the project will lead to significant impact on the environment, it will require that an environmental impact study be conducted.⁷⁷

According to section 20, where a project has been determined under section 19 as requiring an environmental impact study, the developer is required, after completing the study, to make an Environmental Impact Statement (EIS) in the prescribed form and in the prescribed manner. The EIS is to be made according to guidelines established by the Authority.⁷⁸ EIS is made to the Authority, to the lead agency or any other person requesting it.⁷⁹ The lead agency which receives an EIS under section 20 is, in consultation with the Authority, required to study it and if it considers it to be complete shall deal with it in the manner prescribed.⁸⁰

- **The EIA Process**

The Guidelines for environmental Impact Assessment lay down the basic components of the EIA process in Uganda which consist of three interconnected phases: Screening; Environmental Impact Study; and decision making. These can be applied to projects affecting the environment during the conceptual and design stages or after completion of project formulation and design but before actual implementation.

The objective of the screening, the first phase, is to determine whether the proposed project has or does not have significant impacts. If it is determined not to have potential to cause significant environmental impacts, it should be categorically excluded from further environmental impact assessment and an appropriate decision shall be made to approve and implement the project, with appropriate recommendations to the developer. If however it is found to have a potential to cause significant environmental impacts, further screening is conducted to determine if mitigation measures can readily be identified through further Environment Impact Review (EIR) or a full Environmental Impact Study (EIS) shall be required. If in conducting the EIR adequate mitigation measures are incorporated for the identified impacts, the environmental aspects of the project can be approved.

⁷⁷ *Ibid*, Section 19 (6) and (7).

⁷⁸ See the discussion above.

⁷⁹ Section 20 (3) of NEA.

⁸⁰ The prescribed manner is in the EIA Guidelines discussed above.



A mitigation measure is that which a developer may carry out to reduce or minimize the impact to the environment that the proposed project may cause or may have caused. The purpose of this is to look for alternative and better ways of implementing the proposed project or associated activities so that the negative impacts are substantially eliminated or minimized while the benefits are enhanced. This is done by developing a mitigation plan which should include the following items: identification and summary of all anticipated adverse environmental impacts; description of each mitigation measure, including the type of impact to which it relates and the conditions under which it is required, together with designs, equipment descriptions and operating procedures; description of the elements of the monitoring programme; monitoring and reporting procedures that are designed to ensure early detection of conditions that necessitate corrective actions and provide information on the progress and results of mitigation and institutional strengthening measures.

If adequate mitigation measures are not identified, the project shall be subject to further detailed environmental impact study (phase 2). Screening therefore assists in determining whether the proposed project does not require EIA; has significant environmental impacts for which mitigation measures can readily be identified either directly or through environment impact review; or has significant environmental impacts whose mitigation measures can not readily be identified hence requiring a detailed environmental impact study.

The second phase, Environmental Impact Study, involves, as an initial step, the determination of the scope of work to be undertaken in assessing the likely environmental impacts of the proposed project. Scoping involves identification of potentially significant environmental impacts and elimination of insignificant impacts and is applied to all activities which require a full Environment Impact Study.

The scoping exercise should, to the extent possible, involve consultations with potentially affected communities, relevant government agencies, representatives of other interested parties like NGOs, the private sector, independent experts and all other stakeholders including the general public. This usually involves meeting them to obtain comments on what should be included in the study and what alternatives should be considered in order that an adequate Environmental Impact Study shall be conducted.

During scoping, the developer, in consultation with the Authority, lead agency and other appropriate and interested parties is required to determine questions about the proposed project which should be answered through the EIA study;

identify the potentially significant impacts of the projects which shall be addressed in the study, identify the full range of stakeholders who may be



affected or are interested in the proposed project and other technical aspects related to the proposed action.

Based on the information from the scoping exercise, an Environmental Impact study is conducted and an Environmental Impact Statement (EIS) is prepared. The developer is required to submit 10 copies of the EIS to the Authority, which in-turn forwards copies to the Lead Agency and to other stakeholders and interested parties for comment and review before the approval is considered. Any comment received is to be taken into account in making a decision on the EIS.

The third phase concerns decision making. This is on the basis of a finding that either the project is exempt, appropriate mitigation measures have been incorporated for identified potential environmental impacts, or the preparation of the EIS. The decision may approve or disapprove the environmental aspects of the proposed project.

The basic steps in the decision making process for the EIS include the review of the environmental findings, in which case the Authority in consultation with the appropriate Lead Agency review the contents of the EIS paying particular attention to the identified environmental impacts and mitigation measures related thereto, as well as the level of consultation and involvement of the affected stakeholders in the Environmental Impact Study process. In this review, the level of address of the Terms of Reference setout for the study is to be considered. The Lead agency, stakeholder and public comments shall be taken into account in making the decision by the authority on whether or not to approve the EIS.

The second step involves the approval of the EIS by the authority. Based on the contents of the EIS and taking into account the Lead Agency review findings and the stakeholder and public comments on EIS, the Authority is required to approve or disapprove the environmental aspects of the project or part thereof, and issue a certificate of approval of the Environmental Impact Assessment. The authority may also issue such approval subject to such conditions as it deems fit.

The third step involves a decision on the project and record of decision. After approval or disapproval of the environmental aspects of the EIS by the Authority, the Lead Agency decision makers and licensing authorities, will then take appropriate action to approve or deny the project based on all of its merits (environmental, social, economic, political or other factors) and a record of decision shall be prepared.

After reaching at a decision on the proposed action, if it is approved, the developer will be licensed or permitted to implement the project in accordance



with the mitigation measures stipulated in the Environmental Impact Statement and any other terms and conditions attached to the approval. If it is denied, the developer may if such denial is based on environmental considerations that can further be improved, be urged to revise the proposed action to eliminate adverse impacts.

- **Public Participation and Hearing in EIA Process**

This is regulated by the Environmental Impact Assessment Public Hearings Guidelines, 1999. The purpose of these Guidelines is to guide the conduct of the hearings in the environmental impact assessment process especially in seeking questions and answers respecting a project under review; provide for public input in the environmental impact assessment review process and receive submissions and comments from any interested party; find out the validity of the predictions made in environmental impact study; and seek information to assist the Executive Director to arrive at a fair and just decision and promote good governance in the environmental impact assessment process.⁸¹ All hearings are to be held in public and be accessible to the public with no exclusion⁸² and shall be held at a location depending on the location, nature of the project and the cost involved in holding the public hearing but it should most probably be held at a venue convenient and accessible to those persons who are most likely to be affected by the project.⁸³

The developer is required provide at the hearing a person or group of persons who are knowledgeable of the project and who are available to answer questions which are directed to the developer.⁸⁴ Public hearings are premised on the fact that the people surrounding the proposed project are the ones likely benefit from or suffer from the adverse environmental impacts of a proposed project. It is therefore essential to include them in the EIA process to enable them weigh the benefits and burdens of the project and decide whether it is tenable to them.

6.2 Environmental Audit

Environmental audit in the broadest sense is simply a check on some aspects of environmental management. There are however many definitions for environmental audit. The term was first used in the 1970' but now refers to different activities; for example checking performance of environmental monitoring equipment; corporate compliance with environmental legislation and checking the accuracy of environmental impact predictions. A commonly quoted definition of environmental audit is that of the International Chamber of Commerce (1989) as: 'A management tool comprising a systematic

documented,

⁸¹ Paragraph 3.

⁸² Paragraph 4.

⁸³ Paragraph 6.

⁸⁴ Paragraph 14.

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periodic and objective evaluation of how well environmental organisation, management and equipment are performing with the aim of helping to safeguard the environment by: (a) facilitating management control of environmental practices; and (b) assessing compliance with company policies, which includes meeting regulatory requirements.

NEA defines "environmental audit" to mean the systematic, documented, periodic and objective evaluation of how well environmental organisation, management and equipment are performing in conserving the environment and its resources. Section 3 (3) (c) requires that any on-going activity be subjected to an environmental audit in accordance with section 22 of the Act. NEMA, in consultation with the lead agency, is responsible for carrying out an environmental audit of all activities that are likely to have significant effect on the environment.⁸⁵ An environmental inspector⁸⁶ is authorized to enter on any land or premises for the purpose of determining how far the activities carried out on that land or premises conform to the statements made in the environmental impact statement. The operator of a project for which an environmental impact statement was made is required to keep records and make annual reports to the Authority describing how far the project conform in operation with the statements made in the environmental impact statement.⁸⁷

The operator of a project is also required to take all reasonable measures to mitigate any undesirable effects not contemplated in the environmental impact statement and shall report on those measures to the Authority annually or as the Authority may, in writing, require.⁸⁸

Environmental Audit Process

The procedure for conducting the Auditing process is laid down in Environmental Audit guidelines for Uganda (1999).

- **Pre Audit Phase**
 - a) Scope of Audit**

The scope describes the extent and boundaries of the audit in terms of factors such as physical location and organizational activities as well as the manner of reporting. The scope of the audit is determined is determined by the client⁸⁹ and the lead auditor. The auditee should normally be consulted when determining

⁸⁵ *NEA*, Section 22 (2).

⁸⁶ Appointed under section 79 of *NEA*.

⁸⁷ *Ibid*, Section 22 (3).

⁸⁸ *Ibid*, Section 22 (2).

⁸⁹ Client means the organisation commissioning the audit. The client may be the auditee, or any other organisation which has the regulatory or contractual right to commission an audit.



the scope of the audit. Any subsequent changes in the audit scope need agreement between the client and lead auditor.

b) Preliminary Document Review

At the beginning of the audit process, the lead auditor should review the organisation's documentation such as environmental policy statements, programmes, records or manuals for meeting its environmental requirements. In doing so, use should be made of all appropriate background information on the auditee's organisation. If the documentation is judged to be inadequate to carryout the audit, the client should be informed.

Key Pre-audit Information Includes:

- A map of site and its locality;
- A brief history of the site and activities carried out;
- A summary of the current organizational structure;
- A list of key environmental issues from management point of view;
- Environmental policy and other information relevant to the environment;
- Previews of environmental reviews or audit reports
- Restrictions on audit team such as restricted access to parts or safety requirements;
- Process flows diagrams
- Copy of EIS relating to the site.

c) Audit Plan

The audit plan should be designed to be flexible in order to permit changes in emphasis based on information gathered during the audit, and to permit the effective use of resources. The plan should include the audit objectives and scope, the audit criteria, the procedures for auditing, the working and reporting languages of the audit, the dates and places where the audit is going to be conducted, identification of the audit team members, confidentiality requirements, report retention requirements, and identification of sections of the public affected and to be consulted.

d) Audit Team Assignments

As appropriate, each audit team member should be assigned specific terms of reference to cover functions of activities to audit and be instructed on the audit procedure to follow. Such assignments shall be made by the lead auditor in consultation with the audit team members concerned. During the audit, the lead auditor may make changes to the work assignments to ensure the optimal achievement of the audit objectives.

- **Conducting the Audit**
 - a) Opening meeting**

There should be an opening meeting whose purpose is to: introduce the members of the audit team to the auditee's management; explain and review the scope objectives and audit plan and agree on the audit time table; provide short summary of the of the methods and procedures to be used to conduct the audit; establish official communication links between the audit team and the auditee; and resolve misunderstandings or fill any gaps in the pre-audit information.

- b) Collecting Audit Evidence**

Sufficient audit evidence should be collected to be able to determine whether the auditee's environmental practices conform to the audit criteria. Audit evidence should be collected through interviews, examination of documents and observation of activities and conditions. Indications of nonconformity to the audit criteria inspections should be recorded. Information gathered through interviews should be verified by acquiring supporting information from independent sources such as observations, records and results of the existing measurements.

- c) Audit Findings**

The audit team should review all of their audit evidence to determine whether the environmental practices do not conform to the audit criteria. The audit team should then ensure that audit findings of nonconformity are documented in a clear concise manner and supported by audit evidence. Audit findings should be reviewed with the reviewed with the responsible auditee manager with a view of obtaining acknowledgement of the factual basis of all findings of nonconformity.

- d) Closing Meeting**

After completion of evidence collection phase and prior to preparing an audit report, the auditors should hold a meeting with the auditee's management and those responsible for the functions audited. The main purpose of this meeting is to present audit findings to the auditee in such a manner as to obtain their clear understanding and acknowledgement of the factual basis of the findings.

- **Audit Reports**

The audit report is prepared under the direction of the lead auditor, who is

responsible for its accuracy and completeness. The topics to be addressed in the audit report should be those determined in the audit plan. Any changes desired at the time of preparation of the report should be agreed by the parties concerned. The audit report should contain the audit findings or a summary thereof with reference to supporting evidence. The audit report should be sent to



the client by the lead auditor. The distribution of the report should be determined by the client in accordance with the audit plan. The auditees should receive a copy of the audit report unless specifically excluded by the client.

6.3 Environmental Monitoring

NEA defines environmental monitoring to mean the continuous determination of actual and potential effects of any activity or phenomenon on the environment, whether short term or long term. The general objective of monitoring is to establish the status of environment and to evaluate the impacts of various activities on the environment in general and natural resources in particular. The specific objectives are:

- To understand the present levels of degradation by various agents so as to judge whether the abatement policies, projects and programmes are succeeding;
- To identify environmental risks and impacts not previously known so that they can be brought under control;
- To follow the movement of harmful agents through the environment into living creatures and man himself; and
- To identify activities that are beneficial to the environment and ensure sustainable use of natural resources.

NEMA is required, in consultation with a lead agency, to monitor all environmental phenomena with a view to making an assessment of any possible changes in the environment and their possible impacts; and the operation of any industry, project or activity with a view to determining its immediate and long-term effects on the environment. For this purpose, an environmental inspector appointed under section 79 may enter upon any land or premises to monitor the effects upon the environment of any activities carried out on that land or premises.⁹⁰

6.4 Environmental Standards

The National Environment Action Plan for Uganda (1995) recognized the need to establish environmental standards. The plan recommended the establishment of committees to develop standards in consultation with the lead agencies in every aspect of environmental management and train and equip corresponding monitoring units in line agencies; review legislation to establish standards where they are missing; develop capacity and coordinate mechanisms for the establishment and enforcement of environmental standards; and prepare and adopt, in consultation with lead agencies, criteria and procedures for the measurement of standards.

⁹⁰ See section 23 of NEA.

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NEA in part VI deals with environmental standards. The environmental standards can be considered under the following heads:

a) Air Quality Standards

Air quality standards are dealt with under section 24 of NEA. NEMA, in consultation with the lead agency is required to establish criteria and procedures for the measurement of air quality; establish - ambient air quality standards; occupational air quality standards; emission standards for various sources; criteria and guidelines for air pollution control for both mobile and stationary sources; and any other air quality standard prescribed. NEMA is also required to take measures to reduce existing sources of air pollution by requiring the redesign of plants or the installation of new technology or both to meet the requirements of standards established under this section; and make guidelines to minimise emissions of greenhouse gases and identify suitable technologies to minimise air pollution.

b) Water Quality Standards

Water quality standards are covered by section 25 of NEA. Under the section, NEMA, in consultation with the lead agency, is required to establish criteria and procedures for the measurement of water quality; minimum water quality standards for all the waters of Uganda; minimum water quality standards for different uses, including – drinking water; water for industry; water for agricultural purposes; water for recreational purposes; water for fisheries; water for wildlife; and any other water use prescribed.

c) Standards for the Discharge of Effluent into Water

NEMA is required in consultation with the lead agency to establish standards for the discharge of any effluent into the waters of Uganda; prescribe measures for the treatment of any effluent before discharge into the sewage system; and require that the operator of a plant undertake such works as it considers necessary for the treatment of effluent before it is discharged into the water.⁹¹ These have been developed and contained in the National Environment (Standards for Discharge of Effluent into Water or on Land) Regulations, S.I. No 5/1999 specified in the schedule to the Act.

d) Standards for the Control of Noxious Smells

NEMA is also required, in consultation with the lead agency, to establish the procedures for the measurement and determination of noxious smells; minimum standards for the control of pollution of the environment by smell; and guidelines

⁹¹ Section 26 of NEA.

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for measures leading to the abatement of obnoxious smells, whether from human activities or from naturally occurring phenomena.

e) Standards for the Control of Noise and Vibration Pollution

NEMA in consultation with the lead agency, is required under section 28 Of NEA to establish criteria and procedures for the measurement of noise and vibration pollution; minimum standards for the emission of noise and vibration pollution into the environment; and guidelines for the abatement of unreasonable noise and vibration pollution emitted into the environment from any source. The National Environment (Noise Standards and Control) Regulations provide the detailed noise standard pursuant to this provision.

f) Standards for Subsonic Vibrations

Section 29 requires NEMA, in consultation with the lead agency, to establish criteria and procedures for the measurement of subsonic vibrations; standards for the emission of subsonic vibrations which are likely to have a significant impact on the environment; guidelines for the minimisation of the subsonic vibrations referred to in paragraph (b) from existing and future sources.

g) Soil Quality Standards

NEMA in consultation with the lead agency, is required to establish criteria and procedures for the measurement and determination of soil quality; minimum standards for the management of the quality of the soil. For this purpose, NEMA has to issue guidelines for the disposal of any substance in the soil; the identification of the various soils; the optimum manner for the utilisation of any soil; the practices that will conserve the soil; the prohibition of practices that will degrade the soil. These have been developed and contained under the National Environment (Minimum Standards for Management of Soil Quality) Regulations, 2001 specified in the schedule to the Regulations.

h) Other Standards

NEMA in addition to the standards specified above is required to establish standards for buildings and other structures; industrial products; materials used in industry, agriculture and for domestic uses; solid waste disposal; such other matters and activities that may affect the environment

6.5 Environmental Restoration Orders

The Authority is also given powers to issue to any person in respect of any matter relating to the management of the environment and natural resources an

order referred to as an environmental restoration order. An environmental restoration order may be issued requiring the person to restore the environment



as near as it may be to the state in which it was before the taking of the action which is the subject of the order; preventing the person from taking any action which would or is reasonably likely to do harm to the environment; awarding compensation to be paid by that person to other persons whose environment or livelihood has been harmed by the action which is the subject of the order; or levying a charge on that person which represents a reasonable estimate of the cost of any action taken by an authorized person or organization to restore the environment to the state in which it was before the taking of the action which is the subject of the order.⁹²

An environmental restoration order may require a person on whom it is served to take such action as will prevent the commencement or continuation of or the cause of pollution; restore land including the replacement of soil, the replanting of trees and other flora and the restoration, as far as may be, of outstanding geological, archaeological or historical features of the land or the area contiguous to the land specified in the order; take such action as will prevent the commencement or continuation of or the cause of an environmental hazard; cease to take any action which is causing or may cause or may contribute to causing pollution or an environmental hazard; remove or alleviate any injury to land or the environment or to the amenities of the area; prevent damage to the land or the environment, aquifers beneath the land and flora and fauna in, on, under or above the land specified in the order or land or the environment contiguous to land specified in the order; remove any waste or refuse deposited on land specified in the order; or deposit waste in a place specified in the order.⁹³

Where a person on whom an environmental restoration order has been served fails, neglects or refuses to take the action required by the order, NEMA may, with all necessary workers and other officers, enter or authorise any other person to enter any land under the control of the person on whom that order has been served and take all necessary action in respect of the activity to which that order relates and otherwise to enforce that order as may seem fit.

An environmental restoration order can also be granted by court in any proceedings brought by any person, against a person who has harmed, is harming or is reasonably likely to harm the environment. The person bringing the proceedings need not show that he has an interest in the property, environment or land alleged to have been harmed.

- **Indian Council for Enviro-Legal Action v union of India** (1995) 3 SCC 77,

⁹² *Ibid*, Section 67.

⁹³ *Ibid*, Section 67 (4) (b).



The respondents operated chemical factories without the requisite licences and had not installed equipment for treatment of highly toxic effluent which they discharged. The discharges polluted water aquifers and the soil and the Court held that the respondents were bound to take all necessary measures to remove the sludge and other pollutants lying in the affected area, and also to defray the cost of the remedial measures required to restore the soils and underground water sources.

6.6 Environmental Easements

An easement is a right to the use of land, or a right to restrict the use of land. An easement is the right to do something or the right to prevent something over the real property of another. At common law, an easement came to be treated as a property right in itself and is still treated as a kind of property by most jurisdictions. In some jurisdictions, another term for easement is equitable servitude, although easements do not have their origin in equity.

An easement is a right benefiting one piece of land (known as the dominant tenement) that permits the rightful users of that land to perform specified actions over an adjacent piece of land (known as the servient tenement).

Section 72 of NEA provides that the court may, on an application, grant an environmental easement, subject to the ct. the section further states that the object of an environmental easement is to further the principles of environment management set out in section 2 by facilitating the conservation and enhancement of the environment, in the Act referred to as the benefited environment (dominant tenement), through the imposition of one or more obligations in respect of the use of land, in this Act referred to as the burdened land (servient tenement), being land in the vicinity of the benefited environment.

An environmental easement may be imposed on burdened land so as to preserve flora and fauna; preserve the quality and flow of water in a dam, lake, river or aquifer; preserve any outstanding geological, physiographical, ecological, archeological or historical features of the burdened land; preserve a view; preserve open space; permit persons to walk in a defined path across the burdened land; preserve the natural contours and features of the burdened land; prevent or restrict the scope of any activity on the burdened land which has as its object the mining and working of minerals or aggregates; prevent or restrict the scope of any agricultural activity on the burdened land; create and maintain works on burdened land so as to limit or prevent harm to the environment.

Where an environmental easement is imposed on burdened land on which any

person has at the time of the imposition of the easement any existing right or interest to use that land and that environmental easement will restrict that right



or interest the applicant for the environmental easement has to pay compensation to the burdened landowner.

Where an environmental easement is imposed on land, the title of which is registered under the Registration of Titles Act, the environmental easement has to be registered in accordance with the provisions of that Act applicable to the registration of easements. Where an environmental easement is imposed on any land other than land referred to in above, the district environment committee of the area in which that land is situated is required to register the environmental easement in a local register established for the purpose.

6.7 Polluter Pays Principle

The polluter pays principle implies that the polluter should bear the expenses of carrying out pollution prevention measures or paying for damage caused by pollution. The Polluter Pays Principle addresses liability for environmental damage. It is aimed at ensuring that persons engaged in potentially polluting activities internalize the environmental costs of their activities and put in place preventive measures. Instituting the polluter pays principle ensures that the prices of goods reflect the costs of producing that good, including costs associated with pollution, resource degradation, and environmental harm. Environmental costs are reflected (or "internalized") in the price of every good. The result is that goods that pollute less will cost less, and consumers may switch to less polluting substitutes. This will result in a more efficient use of resources and less pollution.

Originally recommended by the OECD Council in May 1972, the polluter pays principle has been increasingly accepted as an international environmental principle. It has been explicitly adopted in several bilateral and multilateral Resolutions and Declarations, including Principle 16 of the Rio Declaration which provides that national authorities should endeavor to promote the internalization of environmental costs and the use of economic instruments, taking into account the approach that the polluter should, in principle, bear the cost of pollution, with due regard to the public interest and without distorting international trade and investment.

The polluter pays principle is incorporated in principles for environment management under section 2 of the NEA where it is provided that the NEMA shall ensure that the true and total costs of environmental pollution are borne by the polluter. In cases of application for pollution licence, the committee is not to issue a pollution licence unless it is satisfied that the licensee is capable of compensating the victims of the pollution and of cleaning the environment in accordance with the "polluter pays principle".⁹⁴ When determining the fee

for the issue of a pollution licence, it has to be done in accordance with the polluter pays

⁹⁴ Section 58 (6) of NEA.



principle. Accordingly, the person contributing the greater amount of pollution shall bear the largest burden in paying for cleaning the environment; and the fee shall be used to promote behaviour that conserves the environment by charging smaller fees for activities that reduce pollution.⁹⁵

- **In Indian Council for Enviro-Legal Action v Union of India** (above),

The Court observed that the question of liability of the respondents to defray the costs of remedial measures could also be looked at from another angle, viz., the Polluter Pays Principle, according to which the responsibility for repairing the damage was that of the offending industry. The Court held that the respondents were absolutely liable to compensate for the harm caused by them to the villagers in the affected area, to the soil and to the underground water.

6.8 Precautionary Principle

The precautionary principle is one of the most important general environmental principles for avoiding environmental damage and achieving sustainable development. As set forth in the Rio Declaration, the precautionary principle states that where there are threats of serious or irreversible damage, lack of full scientific certainty shall not be used as a reason for postponing cost-effective measures to prevent environmental degradation.

This precautionary approach underlies a number of international legal instruments. It also applies in a variety of contexts from protecting endangered species to preventing pollution. The precautionary principle evolved from the growing recognition that scientific certainty often comes too late to design effective legal and policy responses to potential environmental threats. In essence, it switches the burden of proof necessary for triggering policy responses. The precautionary principle can have far-reaching implications. For example, implementing the precautionary principle in the context of pollution prevention led the UNEP Governing Council to urge countries to adopt alternative Clean Production methods including raw material selection, product substitution, and clean production technologies and processes as a means of implementing a precautionary principle in order to promote production systems which minimize or eliminate the generation of hazardous wastes.

In Uganda, the Wetlands Sector Strategic Plan enunciates 4 guiding principles to expand the headline mission. One of these is that the precautionary principle should be applied whenever the impacts of management options are uncertain

In **Shehla Zia v WAPDA**, citizens having apprehension against construction

of a grid station in a residential area sent a letter to the Supreme Court for consideration as a human rights case. Considering the gravity of the matter

⁹⁵ Section 62 (2) of NEA.



which might involve and affect the life and health of the citizens at large, notice was issued to the Authority (WAPDA).

The Court noted that there was a trend in support of the fact that there might be a likelihood of adverse effects of electro-magnetic fields on human health. It held that, as there was a state of uncertainty, the authorities should observe the rules of prudence and precaution. The rule of precaution was first to consider the welfare and safety of the human beings and the environment and then to pick up a policy and execute the plan which was more suited to obviate the possible danger or take such alternate precautionary measures which might ensure safety. To stick to a particular plan on the basis of old studies or inconclusive research could not be said to be a policy of prudence and precaution.

The Court therefore appointed a Commissioner to examine and study the scheme, planning device and technique employed by the Authority and report whether there was any likelihood of any hazard or adverse effect on the health of the residents of the locality. The Commissioner might also suggest a variation in the plan to minimize the danger.

6.8 Environmental Inspection

NEMA is given powers to designate as many officers as it deems fit from duly qualified public officers, whether by name or by title of office, to be environmental inspectors within such local limits as may be specified in the notification in the gazette.⁹⁶ An environmental inspector may, in the performance of his or her duties under NEA or any regulations made thereunder, at all reasonable times and without warrant enter on any land, premises or vehicle to determine whether the provisions of this Act are being complied with; require the production of, inspect, examine and copy licences, registers, records and other documents relating to this Act or any other Act relating to the environment and the management of natural resources; make examinations and inquiries to discover whether this Act is complied with; take samples of any article or substance to which this Act relates and, as may be prescribed, submit the samples for tests and analyses; carry out periodic inspections of all establishments within the local limits of his or her jurisdiction which manufacture, produce as by-products, import, export, store, sell, distribute or use any substances that are likely to have a significant impact on the environment, to ensure that the provisions of this Act are complied with; carry out such other inspections as may be necessary to ensure that the provisions of the Act are complied with; seize any plant, equipment, substance or any other thing which he or she believes has been used in the commission of

an offence against this Act or the regulations made thereunder; close any manufacturing plant or other

⁹⁶ Section 79 of NEA.



activity which pollutes or is likely to pollute the environment contrary to this Act for a period of not more than three weeks; issue an improvement notice requiring the operator of any manufacturing plant or other activity to cease any activities deleterious to the environment which are contrary to this Act; and cause a police officer to arrest any person whom he or she believes has committed an offence under this Act.

6.9 Environmental Rights

The 1995 Constitution of the Republic of Uganda is the supreme law of the land and it contains rights. One of these is the right to a clean environment. It provides under article 39 that every Ugandan has a right to a clean and healthy environment. This provision has been subject of litigation in a number of cases in Uganda for instance in *The Environmental Action Network (TEAN) v AG & NEMA*,⁹⁷ the petitioners sought for, and court granted, a declaration that smoking in public places violated the right of non-smoking members of the public to a clean and healthy environment guaranteed under article 39 of the constitution.

The right to a clean and healthy environment requires a health and habitable environment including clean water, soil and air that is free from hazards that threaten human health. The right to a clean environment is a third generation right, which does not only depend on the affirmative action of the state, but also on the behaviour of the individual for its realization. Third generation rights are those enjoyed by every body, therefore they are some times called group rights.

The recognition of the right to a clean environment under the constitution is essential because it confers upon the right the highest legal standing, which exists in the country. Therefore it is possible to measure environmental conservation issues against other national interests; economic, military or otherwise so that when there is a conflict, it can be placed at the same level and even be treated as having priority.

Secondly the recognition of the right provides guidance for administrative and judicial authorities vested with the responsibility of resolving concrete problem issues. In other words, it provides a basis for agencies entrusted to implement the law to find solutions for concrete environmental problems.

The right to a clean and health environment is an inherent right to humankind. This position was fortified by the Supreme Court of Philippines in *Oposa V Factoran*⁹⁸ where it was stated that:

⁹⁷ Miscellaneous Application No. 39 of 2001.

⁹⁸ (1993) Supreme Court of Philippines, GR 101083.



“As a matter of fact, these basic rights need not even be written under the constitution for they are assumed to exist from inception of human kind, if they are not explicitly mentioned in the fundamental character. It is because of the well founded fears of the framers that unless the right to a balanced ecology is mandated as State policies by the constitution itself...”

The right to a clean environment is also enshrined in section 3 of the NEA which provides that every person has a right to a clean and healthy environment and every person has a duty to maintain and enhance the environment, including a duty to inform the Authority or Local Environment Management Committees of all activities and phenomena that may affect the environment significantly. The Authority or Local Committee so informed is entitled to bring an action against any other person whose activities or omissions have or are likely to have a significant impact on the environment, to for instance prevent, stop, or discontinue any act or omission deleterious to the environment.⁹⁹

The NEA gives the minister powers to make regulations, on recommendation of the policy committee or the board prescribing all matters that are required or permitted by the Act to be prescribed or are necessary or convenient to be prescribed for giving full effect to the provisions of the Act.¹⁰⁰

In exercise of these powers, the minister made the National Environment (Prohibition of Smoking in Public Places) Regulations, 2003. These Regulations grant every person the right to a clean, healthy and smoke free environment and impose a duty on every person to implement measures to safeguard the health of non-smokers. To ensure the realization of the above right, the Regulations prohibit smoking in public places.

6.10 Environmental Reporting

Section 6 of NEA requires NEMA to prepare and disseminate a state of the environment report once in every two years. Under section 14 (2), the District Environment Committees are required to prepare a district state of the environment report every year and under section 16 the Local Environment Committees are also required to report any events or activities which have or are likely to have significant impacts on the environment to the District Environment Officer, or to the appropriate executive committee, local council or such other person as the district council may direct.

6.11 Environmental Offences/ Crimes

⁹⁹ *Ibid* S.3 (3).

¹⁰⁰ Section 107 (1) of Cap 153 Laws of Uganda 2000, formally Section 108 of the National Environment Statute (1995).



An environmental offence is any deliberate act or omission leading to degradation of the environment and resulting into harmful effects on human beings, the environment and natural resources. Environmental crimes include all violations of environmental laws attracting criminal sanctions.

Historically, traditional criminal law did not care about environmental protection hence there has been a tendency of advocating for it to be included among those crimes that affect or is affected by public order, morality and social economic development. The question has always been whether the environment deserves the response of criminal law.

There are a few provisions in our Penal Code Act relating to environmental protection in the sense of protecting the right to a clean and healthy environment. These relate to nuisances and offences against health and convenience under Part XVII, offences endangering life or health, negligent acts likely to spread infection of disease, adulteration of food or drink, fouling water and air. The effectiveness of these provisions on environment and/or public health protection is limited because they are generalized crimes and not specific and therefore difficult to interpret. The National Environment Act and other sectoral laws therefore seek to provide for a more comprehensive and effective legal framework for criminalisation of and sanctions against those who commit environmental law violations, as one of the ways of ensuring compliance with environmental protection legal provisions.

Environmental offences have certain peculiar characteristics.

- Environmental law provides for anticipatory injury or damage. Even where a violation of the law may not necessarily result in any direct or immediate injury to person or property, failure to comply with the law is an offence. In such cases, the law seeks to guard against the danger or probability of injury or damage and thereby minimize it.
- Environmental laws punish violations of the law provisions. Unlike the traditional criminal offences under the Penal Code Act which prohibit specific acts and impose penalties for those acts, environmental statutes tend to provide for criminal penalties for violation of any of the provisions of the Statute.
- Environmental offences tend to impose strict and vicarious liability. Although the burden of proof lies with the prosecution, there is no need to prove means rea (criminal intention). Also, the employer or proprietor of a facility can be held liable for the acts of the employees. Environmental cases are therefore relatively easy to prove in court. The strict liability nature can be seen from the wording of the provisions in the Act.

- On reporting of cases, the practice has been that aggrieved members of the public or interested environmental concern groups report a case to a lead agency, the District Environment Office or NEMA headquarters.

The common types of environmental crimes likely to feature in our courts generally include doing the following in contravention of the law or without a permit as the case may be-

- Setting up and operating a project without an EIA;
- Discharging from an establishment without a permit;
- Offences relating to environment inspectors and inspections;
- Failure to comply with requirements of a restoration or improvement order;
- Maintaining and operating a facility that emits noise without a permit or beyond the set standards;
- Discharging harmful or polluting substances or waste substances into water systems contrary to the law;
- Disposing, Storing and treating or transporting of hazardous waste without a permit
- All the degrading prohibitions relating to wetlands, river banks and lakeshores (using wetlands, river banks and lakes shores without a permit, area related prohibitions (protected zones)
- Exporting genetic resources or derivatives without a permit;
- All the degrading prohibitions relating to fragile soils protection, hilly and mountainous areas.;

6.12 Public Interest Litigation

Public interest litigation is not defined in any statute, but it describes legal actions brought to protect or to enforce rights that are enjoyed by the members of the public or large parts of it.¹⁰¹ Public interest litigations are proceedings, which may be regarded as having a public element and which involve remedies traditionally associated with matters of public concern. These proceedings do not only focus on the enforcement of rules of constitutional and statutory law and supervision of governmental and administrative tribunals, agencies and offices,¹⁰² but also cover instances where the violation of environmental right or duty is made by private persons including corporations. However, in the later case, a private party is only included in the proceedings as respondent after making the concerned state authority a party.

In simple terms, public interest litigation refers to such suits that are filed in pursuit of the public interest. Such suits may be filed by any public-spirited individual or group of individuals or by a civil society organization, on behalf of

¹⁰¹Greenwatch &UNEP, Hand Book on Environmental Law in Uganda 2005(2005). Vol.1 p.87

¹⁰² Mr. Justice R. K. Abichandani . “ Managing Public Interest Litigation” New Delhi, India.



persons or group of persons whose rights have been violated, and it is not essential that the person filing such a suit should have an interest in the subject matter of the suit.¹⁰³ A successful public interest litigation requires a motivated and capable citizenry with sufficient interest and commitment to the issues at stake; a legal framework with rules that facilitate this kind of litigation as a means of enforcing the rights of citizens; a judiciary that is sympathetic both to this method and the issues pursued thereby and a policy framework that will respond positively to the dictates of courts arising from such actions.¹⁰⁴ Public interest litigation may be used in a strategic manner to advance the position of disadvantaged and vulnerable groups. This form of litigation has been growing in the area of environmental law to ensure realization of environmental rights and duties.

The Ugandan legal framework has created avenues for public interest litigation. Article 50 (2) specifically gives a basis for public interest litigation by providing that Any person or organization may bring an action against the violation of another Person's or group's human rights.

By using the expression, "Any person..." instead of, say; "An aggrieved person..." it allows any individual or organization to protect the rights of another although that person has not suffered the injury complained of. Whenever there is injury caused by an act or omission contrary to the constitution, any member of the public acting bonafide can bring an action for redress of such wrong.¹⁰⁵

Article 50(2) has been interpreted in a number of public interest cases, for instance in *The Environmental Action Network (Ltd) (TEAN) V Attorney General & National Environment Management Authority (NEMA)*, the applicant sought, and court granted a declaration that smoking in public places constituted a violation of the right of the non-smoking members of the public to a clean and health environment. The application was on their behalf and on behalf of the non- smoking members of the public brought under Article 50 (2). The respondents objected and argued that the applicants in this action could not claim to represent the non-smoking members of the public.

Ntabgoba .J held that clause (2) of article 50 answered the objection. He further stated that;

¹⁰³ See the discussion below, specifically on article 50(2) of the 1995 Constitution of Uganda and 71 of the National Environment Act.

¹⁰⁴ O Odhiambo, Michael , “Legal and Institutional Constraints to Public Interest Litigation as a Mechanism for the Enforcement of Environmental Rights and Duties in Kenya,” Paper presented at the Fifth International Conference on Environmental Compliance and Enforcement.

¹⁰⁴ Mel Cousins, “How public interest law and litigation can make a difference to marginalised and vulnerable groups in Ireland” p.1.

¹⁰⁵ UNEP & Greenwatch Hand Book on Environmental Law in Uganda (2nd Edition) 2005 p90.



“...the applicants say they are especially interested in the infringement of the rights and freedoms of those who cannot appreciate their rights and freedoms and those who do not know where to go and how to go there for redress;”

On that ground, he held that the applicants were entitled to a hearing. This decision seems to have not only potentially opened wide the floodgate for public interest litigation in Uganda, but also torn out the gateposts and cast them asunder.¹⁰⁶

In another public interest litigation case of British American Tobacco (BAT) V The Environmental Action Network (TEAN),¹⁰⁷ where TEAN filed an application under article 50(2) seeking orders of the Court that the respondent as a manufacturer of a dangerous product (cigarettes) is under a legal duty to fully and adequately warn the consumers of its product of the full extent of the risk associated therewith. Although the order was denied, on whether article 50(2) authorizes filing of actions on grounds of public interest by private persons, Ntabgoba.J held that “persons,” “organizations” or “groups of persons” can be read in article 50

(2) to include public interest litigants, that to say that the Constitution does not recognize the existence of the needy and oppressed persons and therefore it can not allow actions of public interest groups to be brought on their behalf is to demean the Constitution.

Under the National Environment Act, section 71 provides that the court may in proceedings brought by any person issue an environmental restoration order against a person who has harmed the environment. “Any person” in this section can be interpreted to include even those who have not suffered harm as a result of the activities complained of including public interest litigants.

Apart from such construction, the Act specifically provides in section 71(2) that it shall not be necessary for the plaintiff to show that he or she has a right of or interest in, the property, in the environment or land alleged to have been harmed or in the environment or land contiguous to such environment or land.

The effect of this section is that a person can apply to court for a restoration order even though he or she has not suffered harm and this will definitely cover public interest litigants. The section therefore, as was observed by Okumu Wengi.J in National Association of Professional Environmentalists V AES Nile Power (Ltd),¹⁰⁸ is an enactment of class actions and public interest litigation and abolishes the restrictive standi to sue and locus standi doctrines by stating that the plaintiff need not show a right in the case.

¹⁰⁶ Environmental and Public Interest Litigation Gathers Pace in Uganda
<http://www.lawafrica.com>.

¹⁰⁷ High Court Civil Suit No. 27 of 2003 (Arising from Misc. Applic. No. 70 of 2002).

¹⁰⁸ Miscellaneous Cause No. 60 of 1999



In *Greenwatch & Advocates Coalition for Development and Environment (ACODE) V Golf Course Holdings Ltd*,¹⁰⁹ the applicant NGOs concerned with environmental protection sought a temporary injunction to restrain the respondent from constructing a hotel on a wetland. *Akiiki Kiiza*.J although declined to issue the injunction, recognized the fact that the interest of the applicants was stated to be of public nature and that section 72 (now section 71) gave them a right to sue.

The Role of Public Interest Litigation

Public interest litigation, although a new tool in the management of environmental affairs, has proved to be efficient in the quest for effective environmental stewardship. First, it allows the public to move from mere lamentations to strategic, decisive and enforceable action that will enable the deprived sections of society to realize their rights. This view was held in an Indian case of *Bandhua Muktimorcha V Union of India*,¹¹⁰ where Bhagwati. J noted that public interest litigation is not in the nature of adversary litigation; but it is a challenge and an opportunity to the government and its officers to make human rights (including environmental rights) meaningful to the deprived and vulnerable sections of the community and assure them social and economic justice; which is the signature tune of the constitution.¹¹¹

Second, it is a basis for assisting those who cannot access courts of law to protect their rights for instance the poor, the illiterate and the children. *Rugankingira*.J in *Mtikila V The AG*¹¹² fortified this position when he noted that:

“The relevance of public interest litigation (in Tanzania) cannot be over emphasized – having regard to our socio- economic conditions, these (sic) developments promise more hopes to our people than any strategy currently in place. First of all illiteracy is still rampant.... By reason of this illiteracy, a greater part of the population is unaware of their rights, let alone how the same can be realized.”

The judge also noted that by reason of limited resources majority of the people cannot afford to engage lawyers even where they are aware of the infringement of their rights and the perversion of the constitution. It is submitted that the Ugandan conditions are even worse compared to those of Tanzania especially in terms of poverty. Accordingly the relevance the judge attached to public interest litigation applies with equal force to Uganda.

¹⁰⁹Miscellaneous Application No.390 of 2001 (Arising from HCCS No.834 of 2000)

¹¹⁰ (1984). S.C.

¹¹¹ Narayana: Public Interest Litigation [2nd Edition].

¹¹² Civil Suit No. 5 of 1993 (High Court of Tanzania).



Third, is that it is seen as a mechanism for speeding up justice not only on the part of the injured persons and the perpetrators, but also of the courts. It would for instance have been time consuming if a company pollutes a well and each individual has to file his action independently. Public interest litigation allows an organization or any member of the public to file a single action for the benefit of all those who are injured by the pollution, thereby saving time.

Fourth, is that public interest litigation is based on considerations of practicality. Most of the public interest cases involve injury to a substantial number of persons in the community and it is hard to carry all of them to court, for instance in *Oposa V Factoran*,¹¹³ the suit was said to be filed on behalf of the petitioners and on behalf of others “so numerous that it was impracticable to bring them all before court.” Court accepted that the case was a class suit as the subject matter of the complaint was of common and general interest, ‘not just to several but to all citizens of Philippines.’ Consequently since the parties were so numerous, it was impracticable if not impossible to bring all of them before court, therefore the applicants were representative for those who are not in court.

6.13 Environmental Judicial Remedies

Article 50 (1) of the Constitution provides that any person who claim that his rights (including environmental rights) have been violated can apply to a competent court for redress. The redress that can be applied for may include the following:

a) Judicial Review

Judicial review is a remedy that may be used to quash a decision (certiorari); stop unlawful action (prohibition); require the performance of a public duty (mandamus); declare the legal position of the litigants (declaration); give monetary compensation; and maintain the status quo (a stay).

Judicial review may be awarded where a public body has committed the following wrongful acts or omissions:

- Where it has acted beyond its legal powers (i.e. ultra vires): a decision or an act of a public body may be ultra vires for reasons such as the failure to take into account relevant matters or tasking into account irrelevant matters.
- Where it has acted contrary to the principles of natural justice, which require an absence of bias and a fair hearing in decision making.

¹¹³ (1993) Supreme Court of Philippines, GR 101083, Reprinted in the Environmental Law Case Book for Practitioners and Judicial Officers – Judicial symposium on Environmental Law and Practice in Uganda p 314 -329.



- Where it has acted in error of law.

Judicial review as a remedy is available to an individual who seeks redress for a private grievance arising from the acts or omissions of a public body exercising public powers. In this respect it is a private remedy. It is also available to a member of the public who, though not having a private grievance, wishes to challenge the acts or omissions of a public body. In this respect it is a public remedy. Originally developed by the courts as a common law remedy it has been adopted by statute and now operates as a statutory remedy.

As a private remedy, Statutes typically provide that persons who are aggrieved with the decision of a public body may apply for a review to the courts. Before proceeding the applicant must demonstrate that he is a person aggrieved. "Person aggrieved" was defined in a leading English authority *A.G (Gambia) v Njie*¹¹⁴. Where Lord Denning said:

The words "person aggrieved" are of wide import and should not be subjected to a restricted interpretation. They do not include, of course, a mere busybody who is interfering in things that do not concern him, but they do include a person who has a genuine grievance because an order has been made which prejudicially affects his interests.

As a public remedy, a member of the public may also resort to judicial review to challenge the decisions and actions of public bodies.

b) Injunctions

The purpose of the injunction, if issued, is to restrain the respondent from continuing with an act that has caused harm that is the subject of litigation. An injunction is granted on the balance of convenience; such that the court will weigh the inconvenience it will cause to the applicant if the injunction is not granted, and the inconvenience it will cause to the respondent if the injunction is granted.

The grant of an injunction is discretionary, but the judge has to exercise his discretion judiciously. In the case of *Greenwath and Advocates Coalition for Development and Environment V Golf course Holdings Ltd*, the applicants were seeking an interlocutory injunction to restrain the respondents from constructing a hotel in a wetland. The judge declined to issue an interlocutory injunction on grounds, which can be considered unreasonable, that an injunction could not be issued against a land owner who holds a certificate of title; otherwise, this would amount to violating the provisions of the Registration of Titles Act relating to indefeasibility of title. It is submitted

that in this case the discretion was

¹¹⁴ [1961] 2 All E.R. 540



exercised injudiciously, because in view of section 44 of the Land Act, the utilization of land should be in conformity with the various laws like the National Environment Act (NEA). Accordingly, one would have expected the provisions of the NEA to supersede those of the Land Act in case of a conflict between the two.

An injunction can be interlocutory, which maintains the status quo until the determination of the rights of the parties in the main case or it may be permanent in which case is issued after hearing and determining the main suit.

c) Environmental Restoration Order

Court can also issue a restoration order in accordance with the powers granted under section 71 of the National Environment Act. Such order may require the person to restore the environment as near as it may be to the state in which it was before the taking of action which is the subject of the order. A restoration order may also require a person to make compensation to be paid to the person whose environment has been harmed by the action, which is the subject of the order. A restoration order may require such a person to take action as will prevent the commencement or continuation of pollution, restore land including the replanting of trees or take action to put a stop to environmental hazard, prevent damage to land or aquifers or remove any waste deposit.¹¹⁵

c) Damages

The purpose of damages is to put the victim as far as possible in the position he would have been if no damage had occurred. Damages can be general, where the exact loss can not be quantified or specific, where the actual loss can be ascertained. Damages can also be exemplary, to act as a example or a deterrent to the would be criminals, or punitive, to act as a punishment to the perpetrator for instance where the court considers that his conduct was grossly unreasonable or deliberate.

d) Declaration

A declaration can be made as to the rights of the parties in respect of an alleged violation. However in cases where there has been harm this may not be the appropriate remedy as it may not yield effective approach to environmental restoration.

TOPIC SEVEN: Environmental Management

7.1 Biodiversity

NEA defines "biological diversity" to mean the variability among living organisms from all sources, including, inter alia, terrestrial ecosystems

and aquatic

¹¹⁵ See Section 67 of the National Environment Act.



ecosystems and the ecological complexes of which they, are part; this includes diversity within species, between species and of ecosystems.

Biodiversity gained prominence at the United Nations Conference on Environment and Development (UNCED) in Rio de Janeiro in 1992, and with the coming into force of the Convention on Biological Diversity (CBD). Biodiversity is concerned with the conservation of natural ecosystems and their components in the face of human activities/influence. Recently the main concern has been the role of biodiversity in maintaining the functioning and resilience of ecosystems and the implications of ecological disruption.

Straddling the equator with a wide range of altitudes and climatic conditions, Uganda is endowed with rich biological diversity. There are seven major biogeographic regions (or phytochoria) in Uganda, each with distinct flora and possibly a similar distribution of fauna. Each phytochorion has at least more than 50% of its species confined to it, and this is the basis of Uganda's endemism. Uganda is estimated to have altogether half a million species, with flowering plants numbering over 4500. In addition, Uganda has over 11% and 7% of the known world total of bird and mammal species, respectively. The biological diversity of Uganda contributes well over 50% of the GDP.

The major biodiversity issues in Uganda are: i) loss of biodiversity resulting from habitat conversion; ii) introduction of alien species; iii) pollution; iv) over-harvesting and trade in live plants and animals and derived parts; and, v) climate change. Habitat conversion is associated with population pressure and expansion of farmland and settlements. Alien species causing concern include the Water hyacinth, Nile perch, exotic livestock and non-indigenous crop varieties. Pollutants have caused problems, including eutrophication of water bodies. Trade in various species has led to extinction and near extinction of some species. Climatic change is evidenced by the increasing frequency of droughts and floods in Uganda, which alter the ecosystems.

Section 41 of NEA requires NEMA, in consultation with the lead agency, to issue guidelines and prescribe measures for the conservation of biological diversity. NEMA may, in issuing guidelines specify national strategies, plans and programmes for the conservation and the sustainable use of biological diversity; integrate the conservation and sustainable utilisation ethic in relation to biological diversity in existing government activities and activities of private persons; identify, prepare and maintain an inventory of biological diversity of Uganda; determine which components of biological diversity are threatened with extinction; identify potential threats to biological diversity and devise measures to remove or investigate their effects.

NEMA, in consultation with the lead agency, is also required to prescribe measures to ensure the conservation of biological resources in situ. NEMA, in consultation with the lead agency, is required to issue guidelines for land use methods that are compatible with the conservation of biological diversity; the selection and management of protected areas so as to promote the conservation of the various terrestrial and aquatic ecosystems of Uganda; the selection and management of buffer zones near protected areas; special measures for protection of species, ecosystems, and habitats faced with extinction; prohibiting or controlling the introduction of alien species; integrating traditional knowledge for the conservation of biological diversity with mainstream scientific knowledge.

Under section 43, NEMA, in consultation with the lead agency is required to prescribe measures for the conservation of biological diversity ex situ, especially for species threatened with extinction; and issue guidelines for the establishment and operation of germ plasm banks, botanical gardens, zoos, animal orphanages and any other facilities the authority considers necessary;

NEMA is also required to prescribe measures to ensure that species threatened with extinction which are conserved ex situ are reintroduced into their native habitats and ecosystems where the threat to the species has been terminated; and a viable population of the threatened species has been achieved.

7.2 Lake shores and river banks

Management of river banks and lake shores is dealt with under section 35 of NEA. The section provides that NEMA shall, in consultation with the lead agency, take all measures it considers necessary in order to protect the banks of rivers and the shores of lakes in Uganda from human activities that will adversely affect the rivers and the lakes. Each district environment committee, with the assistance of local environment committees, is required to identify the banks of rivers and the shores of lakes within its jurisdiction which are at risk from environmental degradation or which have other value to the local communities and take necessary measures to minimise the risk or recommend to the authority the need for the protection of those areas.

The Minister is given powers, on the advice of the authority, by statutory instrument, to declare protected zones along the banks of rivers and the shores of lakes within such limits as it considers necessary to protect those rivers and lakes from deleterious human activities. In declaring protected zones on the banks of a river and the shores of a lake, NEMA has to take into account the size of the river or the lake in determining the area of the protected zone; and the existing interests in the land covered by the protected zone.

The management of lake shores and river banks is dealt with in details in the National Environment (Wetlands, River Banks and Lake Shores Management) Regulations. The objectives of these regulations are

- Facilitate the sustainable utilization and conservation of resources on river banks and lake shores by and for the benefit of the people and community living in the area;
- Promote the integration of wise use of resources in rivers and lakes into the local and national management of natural resources for socioeconomic development;
- To give effect to clause 2 of article 237 of the Constitution of Uganda;
- To Provide for the regulated public use and enjoyment of river banks and lake shores;
- enhance research and research related activities; and
- Prevent siltation of rivers and lakes and control pollution or degrading activities.

The Regulations require EIA to be carried out where the activities on the river bank or lakeshore are likely to have adverse effects on those resources. The Regulations also make provisions for issue of environmental restoration orders and improvement notices.

7.3 Ozone layer

At the international level, the protection of the ozone layer is spearheaded by the Vienna Convention for the Protection of the Ozone Layer and Montreal Protocol on Substances that Deplete the Ozone Layer all of which Uganda is a party (refer to the discussion above)

At the national level, section 50 of NEA provides that NEMA shall, in consultation with the lead agency, undertake national studies and give due recognition to developments in scientific knowledge relating to substances, activities and practices that deplete the stratospheric ozone layer and other components of the stratosphere to the detriment of human health. The authority is also, in consultation with the lead agency, required to make regulations, issue guidelines and institute programmes concerning the elimination of substances that deplete the ozone layer; management practices and activities likely to lead to the degradation of the ozone layer and the stratosphere; and the reduction and minimisation of risks to human health created by the degradation of the ozone layer and the stratosphere.

In fulfillment of this obligation, the National Environment (Management of Ozone Depleting Substances and Products) Regulations 2001 were designed. These Regulations can be said to be the national level initiative to control substances and products that deplete ozone layer as is the case with the Vienna

Convention on Substances that Deplete the Ozone layer at the international level. The



object of these regulations is to regulate the production, trade and use of the controlled substances and products; provide a system of data collection that will facilitate compliance with the relevant reporting requirements under the protocol;¹¹⁶ promote the use of ozone friendly substances, products, equipment and technology; and the elimination of substances and products that deplete the ozone layer.¹¹⁷

Under regulation 4, no person shall import or export a controlled substance or product listed in the First and Second Schedules¹¹⁸, without a license issued by the Executive Director and no person shall import or export a controlled substance or product from or to a country that is not a party to the Protocol. A person who imports or exports a controlled substance or product in contravention of this regulation commits an offence.¹¹⁹

The Executive Director¹²⁰ is empowered to issue a license to import or export a controlled substance or product where he or she is satisfied that the applicant has adequate and appropriate facilities and equipment to handle the controlled substance or product without causing damage to the environment.¹²¹ This license is transferable and it only entitles the license holder to import or export a controlled substance or product through the customs ports of entry and exit designated in the Fourth Schedule.¹²²

The Authority¹²³ is required under regulation 12 carry out public awareness activities and programs relating to the elimination of ozone depleting substances and products.¹²⁴ The Authority is required to ensure training of technicians engaged in maintaining, servicing or disposing of equipment containing ozone- depleting substances and the Executive Director shall, once in each year, publish in the mass media and at the offices of the Authority, a list of controlled substances and products.¹²⁵

The regulations establish offences and penalties. Under Regulation 14, any person who imports or exports any controlled substance or product without a

¹¹⁶ According to Regulation 2, Protocol for purposes of these Regulations means the Montreal Protocol on Substance that Deplete the Ozone Layer adopted in 1987, as amended from time to time.

¹¹⁷ Regulation 3.

¹¹⁸ The Controlled substances under the second schedule for instance include,

hydrobromofluorocarbons (HBFCs), chlorofluorocarbons (CFCs) halons, carbon tetrachloride, trichloroethane (methyl chloroform), hydrochlorofluorocarbons (HCFCs) and methyl bromide.

¹¹⁹ Regulation 4 (4).

¹²⁰ According to Regulation 2, Executive Director means the Executive Director of NEMA appointed under section 12 of the National Environment Act.

¹²¹ Regulation 6 (1).

¹²² Regulation 6 (2).

¹²³ Under Regulation 2, "Authority" means the National Environment Management Authority established under section 4 of the Act.

¹²⁴ Regulation 12 (1).

¹²⁵ Regulation 12 (2).



valid license issued under these Regulations; engages in the production or manufacture of goods containing, or made with, dependent on, or designed for a controlled substance; fails or neglects to report data to the Executive Director as required under these Regulations; provided false or misleading information or neglects to keep records in accordance with these Regulations, commits an offence and is liable, on conviction, to a fine of not less than thirty thousand shillings and not more than three million shillings or to imprisonment for a term not less than three months, or both.

An Environmental Inspector appointed under the NEA may, in the course of his or her duties, seize any plant equipment or other thing which he or she believes is a controlled product or contains a controlled substance.¹²⁶

7.4 Hazardous Wastes

At the international level, this is regulated by the Basel Convention on the Control of Transboundary Movements of Hazardous Wastes and their Disposal (refer to the discussion above). At the national level, section 53 of NEA provides that The authority shall, in consultation with the lead agency, adopt standard criteria for the classification of hazardous wastes with regard to determining - extremely hazardous waste; corrosive waste; carcinogenic waste; flammable waste; persistent waste; toxic waste; explosive waste; radioactive waste; and any other category of waste the authority may consider necessary. The section further provides that any person who discharges any hazardous waste determined above without a licence issued by the authority or contrary to any regulations made under the section or to any conditions specified in the licence commits an offence.

Section 54 provides that no person shall import into Uganda any hazardous waste falling under any category determined under section 53 and any person who contravenes this section commits an offence.

Section 55 of NEA lays down the guidelines for management of toxic and hazardous chemicals and materials. Under the section, NEMA, in consultation with the lead agency, is required to establish criteria for the classification of toxic and hazardous chemicals and materials in accordance with their toxicity and the hazards they present to human health and to the environment and on the basis of this criteria it shall guidelines and prescribe measures for the management of toxic and hazardous chemicals and materials.

The guidelines issued and the measures prescribed by NEMA have to include guidelines and measures on registration of chemicals and materials; labeling of chemicals and materials; packaging for chemicals and materials; advertising

of

¹²⁶ Regulation 15.



chemicals and materials; control of imports and exports of toxic and hazardous chemicals and materials; distribution, storage, transportation and handling of chemicals and materials; monitoring of the effect of chemicals and their residue on human health and the environment; disposal of expired and surplus chemicals and materials; restricting and banning of extremely toxic and hazardous chemicals and materials. Section 56 of prohibits discharging any hazardous substance, chemical, oil or mixture containing oil in any waters or any other segment of the environment except in accordance with guidelines prescribed by the authority in consultation with the lead agency.

The National Environment (Waste Management) Regulations apply to all categories of hazardous and non-hazardous waste; to the disposal and storage of hazardous waste and their movement into and out of Uganda; and to all waste disposal facilities, landfills, sanitary fills and incinerators.¹²⁷

Under Regulation 5, a person who owns and controls a facility or premises which generate waste shall minimize the waste generated by adopting cleaner production methods like; improvement of production process through-conserving raw materials and energy, eliminating the use of toxic raw materials

, reducing toxic emissions of waste; monitoring the product cycle from the beginning to the end by- identifying and eliminating potential negative impacts of the product, enabling the recovery and reuse of the product where possible , reclamation and recycling, incorporating environmental concerns in the design and disposal of a product.

Industries are under a duty to treat their wastes. An industry shall not discharge or dispose of waste in any state into the environment unless the waste has been treated in a treatment facility and in a manner approved by the lead agency in consultation with NEMA.¹²⁸ Where a person operating a factory that discharges or dispose of waste whether treated or not into the disposal site or plant which is not approved or licensed in accordance with these Regulations commits an offence.¹²⁹

In relation to transboundary movement of hazardous waste, NEMA is designated as the national authority for the operation of the prior informed consent procedure for the import, export, transit or other transboundary movement of hazardous waste. NEMA is required to closely liaise with the designated national authorities of other states under any international conventions or arrangements to which Uganda is a party and international organisations with competence in the field of the management of transboundary movements of hazardous wastes under any convention or

arrangement to which Uganda is a party for the

¹²⁷ Regulation 3.

¹²⁸ Regulation 12 (1).

¹²⁹ Regulation 12 (2).



purpose of monitoring and controlling the movements of hazardous wastes in Ugandan territory.¹³⁰

TOPIC EIGHT: Pollution

8.1 Control of Water Pollution

Water is a major factor in the socio-economic development of Uganda. The rapid growth in population and increased agricultural and industrial production require adequate and safe water supply. The development of adequate domestic and industrial water supply is hampered by inadequate resources, accessibility to safe water supply points, scattered settlements and inadequate education and awareness on hygiene and increasing levels of water pollution.

NEA defines "pollution" to mean any direct or indirect alteration of the physical, thermal, chemical, biological or radioactive properties of any part of the environment by discharging, emitting or depositing wastes so as to affect any beneficial use adversely, to cause a condition which is hazardous or potentially hazardous to public health, safety or welfare, or to animals, birds, wildlife, fish or aquatic life, or to plants or to cause a contravention of any condition, limitation or restriction which is subject to a licence under this Act

Principle XXI of the National Objectives and Directive Principles of State Policy under the Constitution provides that the State shall take all practical measures to promote a good water management system at all levels. The state is also required to take possible measures to prevent or minimize damage and destruction to land, air and water resources resulting from pollution or other causes.¹³¹ The parliament is required by article 245 by law to provide for measures intended to protect and preserve the environment from abuse, pollution and degradation.

Accordingly, the National Environment Act in part VIII has provisions for the control of pollution. A person shall not pollute or cause any other person to pollute the environment contrary to any of the standards or guidelines prescribed by NEMA. A person can only exceed the standards or guidelines if he is authorized by a pollution licence issued under section 60 of this Act.¹³² The application for a pollution licence in respect of activities that pollute the air in excess of the prescribed standards are to be made to the technical committee on the licensing of pollution, which upon receipt of the application is required to inform the persons who are likely to be affected by the proposed activity of the applicant and invite them to make representations. The committee is also required to consider all representations by the relevant government

¹³⁰ Regulation 19.
¹³¹ Principle XXVII.
¹³² See section 57.



departments, and then consider the application having regard to all the representations received by it.¹³³

Under the Water Act, the Minister is given powers in any area to prescribe waste which may not be discharged; trades which may not discharge waste; or classes of premises or particular premises from which waste may not be discharged, directly or indirectly into any water except in accordance with a waste discharge permit.¹³⁴

A person wishing to discharge waste may apply to the director for a waste discharge permit in the prescribed manner who, on receipt of an application, will give public notice of the application made in the prescribed manner. Any person with an interest in the outcome of an application may give notice of objection to the director. The director shall consider every application and objection to it and, after consultations with any persons or public authorities, which he or she sees fit, may grant the permit on such terms and conditions as he or she sees fit.¹³⁵

Section 31 specifically prohibits pollution. The section provides that a person commits an offence who, unless authorised under this Part of the Act, causes or allows waste to come into contact with any water; waste to be discharged directly or indirectly into water; or water to be polluted.

Regulation 4 of the National Environment (Standards for Discharge of Effluent into Water or on Land) Regulations provides that every industry or establishment shall install at its premises, anti-pollution equipment for the treatment of effluent chemical discharge emanating from the industry or establishment. The Anti-pollution equipment installed, has to be based on the best practicable means environmentally sound practice or other guidelines as the Executive Director¹³⁶ may determine.

Regulation 4 of the Water (Waste Discharge) Regulations provides that no person shall discharge effluent or waste on land or into the aquatic environment contrary to the standards established under regulation 3 unless he or she has a permit issued by the Director. A person granted a permit has to ensure that the effluent or waste discharged conforms to the maximum permissible limits established under regulation 3; and has to be subject to such other conditions as the Director may specify.

¹³³ See section 60.

¹³⁴ Section 28 of the Water Act.

¹³⁵ Section 29.

¹³⁶ “Executive Director” means the Executive Director of the National Environment Authority appointed under section 12 of the National Environment Act



The Penal Code Act¹³⁷ provides under Section 176 that a person commits an offence if he voluntarily corrupts or fouls the water of any public spring or reservoir so as to render it less fit for the purpose.

8.2 Control of Air Pollution

The provisions of under part VIII of NEA (discussed above) apply to air pollution. The Penal Code Act¹³⁸ provides under section 177 that a person commits an offence if he voluntarily vitiates the atmosphere in any place so as to make it undesirable to the health of persons in general dwelling or carrying on business in the neighborhood or passing along a public way. This provision in effect creates a prohibition on air pollution.

The NEA gives the minister powers to make regulations, on recommendation of the policy committee or the board prescribing all matters that are required or permitted by the Act to be prescribed or are necessary or convenient to be prescribed for giving full effect to the provisions of the Act.¹³⁹ In exercise of these powers, the minister passed the National Environment (Prohibition of Smoking in Public Places) Regulations, 2003. These Regulations prohibit smoking in public places and public means of transport.

Under Regulation 5 of the National Environment (Waste Management) Regulations, a person who owns and controls a facility or premises which generate waste shall minimize the waste generated by adopting cleaner production methods like; improvement of production process through conserving raw materials and energy, eliminating the use of toxic raw materials, reducing toxic emissions of waste; monitoring the product cycle from the beginning to the end by- identifying and eliminating potential negative impacts of the product, enabling the recovery and reuse of the product where possible, reclamation and recycling, incorporating environmental concerns in the design and disposal of a product. Under these regulations, industries are under a duty to treat their wastes (refer to the discussion above on management of hazardous wastes).

8.3 Control of Soil Pollution

Section 30 of NEA makes provisions for establishment of soil quality standards. The National Environment (Minimum Standards for Management of Soil Quality) Regulations, 2001 provide detailed soil quality standards. The purpose of these regulations is

¹³⁷ Cap 120 Laws of Uganda 2000.

¹³⁸ Cap 120 Laws of Uganda 2000.

¹³⁹ Section 107 (1) of Cap 153 Laws of Uganda 2000, formally Section 108 of the National Environment Statute (1995).



- To establish and prescribe minimum soil quality standards to maintain, restore and enhance the inherent productivity of the soil in the long term;
- To establish minimum standards for the management of the quality of soil for specified agricultural practices;
- To establish criteria and procedures for the measurement and determination of soil quality; and
- To issue measures and guidelines for soil management

Regulation 12 provides that every person shall comply with the measures and guidelines for soil conservation for the particular topography, drainage and farming systems prescribed in the Fourth Schedule. A person who contravenes this commits an offence and is liable, on conviction, to a fine of not less than one hundred and eighty thousand shillings and not more than eighteen million shillings or to imprisonment not exceeding eighteen months, or both.

